THE NATIONAL ASSEMBLY	THE SOCIALIST REPUBLIC OF VIETNAM
	Independence - Freedom - Happiness
Law No. 22/2023/QH15	*Hanoi, June 23, 2023*

BIDDING LAW

Pursuant to the Constitution of the Socialist Republic of Vietnam;

The National Assembly promulgates the Bidding Law.

Chapter I
GENERAL PROVISIONS

Article 1. Scope of regulation

This Law prescribes the state management of bidding activities; authority and responsibility of agencies, organizations and individuals in bidding activities; selection of contractors to implement bidding packages, and selection of investors to implement business investment projects.

Article 2. Subjects of application

This Law applies to agencies, organizations and individuals engaged or involved in bidding activities, including:

1. Selection of contractors using state budget funds as stipulated in the Law on the State Budget, capital from legal sources as prescribed by the laws of state agencies and public non-business units to:

a) Implement investment projects, procurement estimates of state agencies, political organizations, socio-political organizations, socio-politico-professional organizations, socio-professional organizations, social organizations, people's armed forces units or public non-business units and other organizations and individuals;

b) Provide public products and services; purchase medicines, chemicals, testing supplies and medical equipment; purchase national reserve commodities, hire for preservation of national reserve commodities, except for public purchase directly from all subjects in accordance with the law on national reserves;

c) Implement other tasks subject to bidding in accordance with relevant laws;

2. Selection of contractors for the implementation of:

a) Bidding packages of investment projects of state enterprises as stipulated in the Law on Enterprises and enterprises of which 100% charter capital is held by state enterprises;

b) Bidding packages for equipping material-technical foundations, machinery and equipment to support scientific and technological development from the science and technology development fund of state enterprises;

3. Selection of investors to implement business investment projects includes:

a) Land-using investment projects subject to bidding organization in accordance with the land law;

b) Investment projects subject to bidding organization for the selection of investors in accordance with the laws managing sectors and fields;

4. Organizations and individuals engaged in bidding activities other than those specified in Clauses 1, 2 and 3 of this Article may choose to apply all or specific articles, clauses or points of this Law.

Article 3. Application of Bidding Law, relevant laws, treaties, agreements on official development assistance and concessional loans of foreign donors

1. Bidding activities falling within the scope of regulation of this Law must comply with the provisions of this Law and relevant laws. In case there are different provisions on bidding between this Law and previous laws coming into force before the effective date of this Law, the provisions of this Law shall prevail, except for the provisions of Clauses 2, 3, 4, 5, 6, and 7 of this Article.

2. The selection of contractors to sign oil and gas contracts shall comply with the provisions of the law on oil and gas.

3. The selection of investors to implement investment projects in the form of public-private partnership (PPP), and the selection of contractors to implement bidding packages under investment projects in the PPP form shall be conducted in accordance with the law on investment in the form of public-private partnership.

4. The selection of foreign contractors to implement foreign bidding packages of overseas Vietnamese representative missions shall comply with the laws on overseas representative missions of the Socialist Republic of Vietnam.

5. For the selection of contractors for projects using official development assistance (ODA), concessional loans of foreign donors under treaties to which the Socialist Republic of Vietnam is a contracting party (hereinafter referred to as treaties), foreign loan agreements, the provisions of such treaties or loan agreements

shall apply. In cases where treaties and loan agreements do not stipulate or stipulate that Vietnamese law must be applied, the provisions of this Law shall prevail.

Before negotiating or deciding to sign a loan agreement that is not an treaty providing other provisions on bidding or has not been provided for in this Law, the Government shall submit it to the National Assembly Standing Committee for opinions.

6. In case the bidding package includes both procurement contents governed by this Law and procurement contents governed by treaties, the competent person shall decide on the selection of contractors for the part of procurement governed by this Law in accordance with the provisions of treaties.

7. Agencies, organizations and enterprises may independently decide on the selection of contractors on the basis of ensuring publicity, transparency, economic efficiency and accountability in the following cases:

a) Selection of contractors for bidding packages using capital sponsored by domestic organizations and individuals, for which the sponsor requests not to select contractors in accordance with this Law; for bidding packages of public non-business units using borrowed capital, except for investment credit capital of the State, on-loan capital from ODA or concessional loans of foreign donors;

b) Selection of foreign contractors by state agencies, public non-business units, state enterprises, enterprises in which state enterprises hold 100% of charter capital, except for the cases specified in Clause 4 of this Article;

c) The lease, purchase, lease-purchase of houses, headquarters and land-attached assets;

d) Selection of contractors to provide goods, consultancy services, non-consultancy services to ensure continuity for production, business, and procurement to maintain regular activities using funds of state enterprises, and enterprises in which state enterprises hold 100% of charter capital; selection of contractors to implement bidding packages of business investment projects specified in Clause 3 of Article 2 of this Law; selection of contractors to provide consulting services, raw materials, fuels, materials, non-consulting services directly serving the bidding package that the public non-business has won;

dd) Determination of mediators, members of the dispute arbitration panel, or arbitration council to handle disputes arising during the contract performance as decided by the parties according to the contract terms;

e) Procurement of goods and services with a specific selling price determined by the State in accordance with the law on prices;

g) Selection of contractors to provide oil and gas services and goods serving oil and gas activities in accordance with the oil and gas contract approved by the competent authority under the Law on Oil and Gas.

Article 4. Interpretation of terms

In this Law, the terms below shall be construed as follows:

1. *Bid solicitor* means an agency or organization that conducts bidding activities, including:

a) The project owner or an organization established or selected by the project owner;

b) Agency competent to approve investment policies or agency competent to decide to organize bidding to select investors; unit assigned by a competent authority for the selection of investors.

2. *Project owner* means the agency or organization that owns or borrows capital or is assigned to directly manage and use capital and manage the project implementation process; budget-using unit; budget estimation unit directly using procurement estimates outside the state budget; centralized procurement unit.

3. *Short list* means a list of contractors that have passed the prequalification in case of open bidding involving prequalification; or a list of contractors or investors invited to participate in restricted bidding; or a list of contractors with dossiers of expression of interest satisfying requirements of the dossier of invitation for expression of interest.

4. *Consultancy service* means one activity or several service activities, including elaboration and evaluation of reports on planning, overall development diagrams, architecture; survey and making of pre-feasibility study reports, reports on investment policy proposal, dossiers for approval of investment policy, feasibility study reports, economic-technical reports, environmental impact assessment reports; survey and making of designs and cost estimates; bidding consulting; appraisal and examination consulting; supervision consulting; project management consulting; financial arrangement consulting; auditing, and other consulting services.

5. *Non-consultancy service* means one activity or several service activities, including logistics, insurance, advertising, installation, pre-acceptance test or test operation, satellite photography, printing; cleaning; communication; repair, maintenance, and activities other than consultancy services specified in Clause 4 of this Article.

6. *Investment project* (below referred to as project) includes investment program or project on new construction; project on procurement of property; project

on renovation, upgrading or expansion; planning project, task or scheme; technical assistance; other program or project as prescribed by law.

7. *Cost estimate* means the estimated funding sources for procurement within the state budget approved by a competent authority for state agencies, political organizations, socio-political organizations, socio-political-professional organizations, socio-professional organizations, social organizations, people's armed forces units, public non-business units and other organizations and individuals; estimated funding sources for procurement within the lawful financial sources of state agencies, public non-business units.

8. *Bidding* means a process of selecting contractors for signing and performance of contracts on provision of consultancy services, non-consultancy services, goods procurement or construction and installation, or selecting investors for signing and performance of contracts of business investment projects on the basis of ensuring competitiveness, fairness, transparency, economic efficiency and accountability.

9. *Online bidding* means bidding conducted via the national bidding network.

10. *International bidding* means bidding with the participation of both foreign and domestic contractors or investors.

11. *National bidding* means bidding with the participation of domestic contractors or investors only.

12. *Bid* means a price stated by a contractor in the bidding participation application, covering all expenses for execution of a bidding package according to requirements of the bidding dossier or dossier of requirements.

13. *Proposed winning bid* means the bid of a contractor proposed to win the bidding after errors are corrected or deviations are adjusted according to requirements of the bidding dossier or dossier of requirements, minus the value of discounts (if any).

14. *Contractual price* means the value stated in the contract between the project owner and the contractor.

15. *Bidding package* means part or the whole of a procurement project or estimate. A bidding package may include procurement of similar items under different projects or a one-off procurement volume or procurement volume for a period in case of cost estimate or centralized procurement.

16. *Mixed bidding package* means a bidding package in the following cases: engineering and procurement (EP); engineering and construction (EC); procurement and construction (PC); engineering, procurement and construction (EPC); or formulation of project, engineering, procurement and construction (turnkey).

17. *Goods* include machinery, equipment, raw materials, fuel, materials, supplies and spare parts; products; means; consumer goods; medicines, chemicals, testing supplies, medical equipment; and commercial software.

18. *National bidding network* means an information technology system developed and managed by the state management agency in charge of bidding activities for the purpose of uniformly managing information on bidding and conducting online bidding.

19. *Dossier of invitation for expression of interest, dossier of invitation to prequalification* means all the documents used for the form of open bidding with invitation for expression of interest and prequalification, specifying requirements on capacity and experience of contractors, and serving as the basis for the bid solicitor to select a list of contractors which pass the prequalification and a list of contractors with dossiers of expression of interest evaluated as satisfying requirements of the dossier of invitation for expression of interest. In case of investor selection, the dossier of invitation for expression of interest comprises all documents used for the project that needs to determine the number of interested investors in accordance with the land law, the law on sector and field management, including preliminary requirements on capacity and experience for investors.

20. *Dossier of interest, dossier for participation in prequalification* means all the documents made and submitted by a contractor to the bid solicitor according to requirements of the dossier of invitation for expression of interest or dossier of invitation to prequalification. In case of investor selection, the dossier for registration of project implementation comprises all documents prepared and submitted by the investor at the request of the dossier of invitation for expression of interest.

21. *Bidding dossier* means all the documents used for open bidding or restricted bidding, competitive offer, including requirements for a project, bidding package or business investment project and serving as the basis for contractors or investors to prepare bid dossiers and for the bid solicitor to evaluate bid dossiers.

22. *Dossier of requirements* means all the documents used for the appointment of contractors, direct procurement or price negotiation, including requirements for a bidding package, and serving as the basis for contractors to prepare dossiers of proposals and for the bid solicitor to evaluate dossiers of proposals.

23. *Bid dossier, dossier of proposals* means all the documents made and submitted by a contractor or an investor to the bid solicitor according to requirements of the bidding dossier or dossier of requirements.

24. *Competent person* means the person who decides on investment or decides on procurement in accordance with law. In case of investor selection, the competent

person is the head of the agency competent to approve the investment policy as prescribed by the investment law or the competent agency deciding to organize contractor selection.

25. *Investor* means an organization or individual participating in the bid process that is named in the bid and directly enters into and performs the contract, if selected. Investor can be an independent investor or a partnership.

26. *Contractor* means an organization or individual, or a combination of organizations or individuals in the form of a partnership on the basis of an agreement on a joint venture to participate in the bid, sign the bid and directly sign and perform the contract, if selected. In the case of a joint venture, the partnership agreement must clearly define the responsibilities of the leading member of the partnership, general and separate responsibilities of each member in the partnership for the entire scope of the bidding package.

27. *Subcontractor* means an organization or individual that signs a contract with a contractor to participate in construction and installation work; consultancy; non-consultancy; service-related work of the bidding package to provide goods; works under the mixed bidding package.

28. *A special subcontractor* is a subcontractor that performs an important job of a bidding package as proposed by the contractor in the bid dossier or dossier of proposals on the basis of capacity and experience requirements stated in the bidding dossier or dossier of requirements.

29. *Foreign contractor or investor* means an organization established under foreign law or an individual bearing foreign citizenship that participates in bidding.

30. *Domestic contractor or investor* means an organization established under Vietnamese law or an individual bearing Vietnamese citizenship that participates in bidding.

31. *Time of bid closing* means the deadline for receipt of dossiers of expression of interest, dossiers for participation in prequalification, bid dossiers or dossiers of proposals.

32. *Validity duration of a bid dossier or dossier of proposals* means the number of days stated in the bidding dossier or dossier of requirements and counted from the date of bid closing to the last valid day specified in the bidding dossier or dossier of requirements. The duration from the time of bid closing through 24:00 hrs of the date of bid closing is counted as one day.

33. *Construction and installation* covers jobs in the course of construction and installation of works and work items.

Article 5. Eligibility of contractors and investors

1. An institutional contractor or investor is eligible when fully satisfying the following conditions:

a) For domestic contractors or investors: Being an enterprise, cooperative, union of cooperatives, cooperative group, public non-business unit, or foreign-invested economic organization registered for establishment and operation in accordance with Vietnamese law. For foreign contractors or investors: Having a registration for establishment and operation under foreign laws;

b) Applying independent financial accounting;

c) Not being in the process of carrying out procedures for dissolution or having the certificate of enterprise registration, certificate of registration of cooperative, union of cooperatives or cooperative group revoked; not falling into the case of insolvency according to the provisions of the bankruptcy law;

d) Being listed on the national bidding network before approving the results of contractor and investor selection;

dd) Ensuring competitiveness in bidding under Article 6 of this Law;

e) Being not in the period of being banned from bidding according to decisions of competent persons, ministers, heads of ministerial-level agencies, government-attached agencies, other central agencies, chairmans of provincial-level People's Committees as prescribed in Clause 3, Article 87 of this Law;

g) Being not examined for penal liability;

h) Being named in the short list in case such a list has been selected;

i) Entering into a partnership with a domestic contractor or using a domestic sub-contractor, for foreign contractors, unless no domestic contractor is qualified for any job of the bidding package.

2. A contractor being business household is eligible when fully satisfying the following conditions:

a) Having a business household registration certificate as prescribed by law;

b) Being not in the process of terminating its operation or having its business household registration certificate revoked; the owner of the business household is not being examined for penal liability;

c) Satisfying the conditions specified at Points d, dd, e and h, Clause 1 of this Article.

3. An individual contractor or investor is eligible when fully satisfying the following conditions:

a) Having full civil act capacity in accordance with the law of the country of which he/she is a citizen;

b) Having an appropriate professional certificate as required by law;

c) Satisfying the conditions prescribed at Points e and g, Clause 1 of this Article.

4. Contractors and investors who are eligible as prescribed in Clauses 1, 2 and 3 of this Article may participate in the bidding as an independent or a joint venture.

Article 6. Assurance of competition in bidding

1. Contractors submitting dossiers of expression of interest and dossiers for participation in prequalification must be legally and financially independent from the following parties:

a) Consultancy contractors that have made dossiers of invitation for expression of interest and dossiers of invitation to prequalification; project management and supervision; consultancy contractors that make, examine and appraise engineering and cost estimation dossiers; consultancy contractors that make and appraise survey and design tasks;

b) Consultancy contractors that conduct the evaluation dossiers of interest or dossiers for participation in prequalification;

c) Consultancy contractors that appraise the results of invitation for expression of interest or results of prequalification;

d) Project owners, bid solicitors, unless the contractor is a public non-business unit under a state management agency with functions and tasks appropriate to the nature of the bidding package of that state management agency, or is a member company, subsidiary company of a state group or corporation whose main business lines are suitable to the nature of the bidding package of such state group or corporation.

2. When participating in bidding, contractors must be legally and financially independent as prescribed at Point d, Clause 1 of this Article and from the following parties:

a) Consultancy contractors that conduct project management and supervision; consultancy contractors that make, examine and appraise engineering and cost estimation dossiers; consultancy contractors that make and appraise survey and design tasks; consultancy contractors that make and appraise bidding dossiers or dossiers of requirements; consultancy contractors that conduct the evaluation of bid dossiers and dossiers of proposals; consultancy contractors that appraise the results of selection of contractors for such bidding package;

b) Other contractors participating in the same bidding package, for restricted bidding.

3. Consultancy contractors that supervise the performance of contracts, contractors that perform such contracts and consultancy contractors that inspect such bidding packages must be legally and financially independent from each other.

4. Contractors specified in Clauses 1, 2, and 3 of this Article shall be considered legally and financially independent when when fully satisfying the following conditions:

a) Not belonging to the same directly managing agency or organization, for public non-business units;

b) The contractor and project owner, bid solicitor do not have more than 30% shares or contributed capital of each other;

c) Contractors do not hold more than 20% shares or contributed capital of each other when participating in the same bidding package for limited bidding;

d) Bidding contractors and consultancy contractors for that bidding package neither hold shares or contributed capital of each other, nor hold more than 20% shares or contributed capital of another organization or individual, for each party.

5. When participating in bidding, investors must be legally and financially independent from the following parties:

a) Competent agencies and bid solicitors;

b) Consultancy contractors that make and appraise bidding dossiers; consultancy contractors that conduct the evaluation of bidding dossiers; consultancy contractors that appraise the results of selecting investors until the date of signing the business investment project contract.

6. The Government shall detail this Article.

Article 7. Bidding information

1. Information about contractor selection, including:

a) Information on projects and plans for selection of contractors;

b) Notices of invitation for expression of interest and notices of invitation to prequalification;

c) Notice of invitation for bid;

d) Short lists;

dd) Dossier of invitation for expression of interest, dossier of invitation to prequalification, bidding dossier and contents of modification and clarification of dossier (if any);

e) Bid opening results, for online bidding;

g) The contractor selection result;

h) Key information of the contract;

i) Information about handling of violations against bidding laws;

k) Information on the contractor's contract performance results;

l) Relevant information.

2. Information about investor selection, including:

a) Information about the business investment project as prescribed in Clause 2, Article 47 of this Law;

b) Notice of invitation for expression of interest, dossier of invitation for expression of interest and results of invitation for expression of interest;

c) Notice of invitation for bids, bidding dossier and contents of modification and clarification of dossier (if any);

d) Results of investor selection;

dd) Key information of the contract;

e) Information about handling of violations against bidding laws;

g) Relevant information.

3. The information specified in Clauses 1 and 2 of this Article shall be posted on the national bidding network, except for projects, business investment projects, and bidding packages containing information on the list of state secrets.

Article 8. Provision and publishing of bidding information

1. The responsibility for posting information on contractor selection is regulated as follows:

a) Project owners shall post information as prescribed at Points a, g, h, i, and k, Clause 1, Article 7 of this Law;

b) Bid solicitors shall post the information specified at Points b, c, d and dd, Clause 1, Article 7 of this Law. For bidding packages subject to international bidding, the bid solicitor shall post the information specified at Points b, c and d, Clause 1, Article 7 of this Law in Vietnamese and English; for the information specified at Point dd, Clause 1, Article 7 of this Law, the bid solicitor shall publish the information in English or in both Vietnamese and English;

c) Contractors shall update and post information about their capacity and experience in the contractor database, including information prescribed at Point k, Clause 1, Article 7 of this Law.

2. The responsibility for posting information on investor selection is regulated as follows:

a) Competent agencies shall publish information specified at Points a, b and e, Clause 2, Article 7 of this Law;

b) Bid solicitors shall publish the information specified at Points c, d and dd, Clause 2, Article 7 of this Law. For business investment projects subject to international bidding, bid solicitors must publish this information in both Vietnamese and English.

3. Organizations and individuals providing and posting information as prescribed in Clauses 1 and 2 of this Article shall take responsibility before the law for the accuracy and truthfulness of the registered and posted information on the national bidding network and for the consistency between the posted documents and the approved documents.

4. Information specified at Points a, d, g, h, i, Clause 1 and Points a, d, dd, e, Clause 2, Article 7 of this Law shall be posted on the national bidding network no later than 05 working days from the date of issuance of the document or the effective date of the contract.

Article 9. Handling and archiving dossiers during the selection of contractors and investors

1. Dossiers of financial proposals of the contractors that do not pass the technical evaluation shall be returned in their original conditions to the contractors within the following time limits:

a) For consultancy service packages: within 10 days from the date of contract signing with the selected contractor;

b) For non-consultancy service packages, procurement of goods, construction and installation, the single-stage two-envelope method shall be applied: when returning or releasing the bid security of an unselected contractor or when posting the contractor selection result.

2. Dossiers of financial proposals of investors that do not pass the technical evaluation shall be returned in their original conditions to the investors concurrently

with the refund or release of bid security of unselected investors or when publishing investor selection results.

3. Past the time limits specified in Clauses 1 and 2 of this Article, if the contractor or investor does not receive back his/her dossier of financial proposals, the bid solicitor shall consider and decide on the destruction of the dossier but must ensure that information is not disclosed.

4. In case of bid cancellation, the related dossiers shall be stored for a period of 5 years from the date of issuance of the bid cancellation decision.

5. Finalization dossiers, completed dossiers and documents related to the winning contractor of the bidding package shall be archived in accordance with the law on archiving.

6. All dossiers related to the process of selecting contractors and investors shall be archived for a minimum period of 5 years from the date of contract finalization or the date of termination of the business investment project contract, except for the dossiers specified in Clauses 1, 2, 4 and 5 of this Article.

Article 10. Preferences in selection of contractors or investors

1. Entities eligible for preferences in contractor selection are:

a) Goods originating in Vietnam;

b) Environmentally friendly products and services as stipulated by the law on environmental protection;

c) Domestic contractors produce goods of Vietnamese origin in accordance with the bidding dossiers;

d) Foreign contractors entering into partnerships with domestic contractors to perform jobs representing 25% or more of the value of the bidding package;

dd) Domestic contractors participating in bidding independently or in partnership status with other domestic contractors in international bidding;

e) Micro-enterprises and small enterprises as defined by laws on support for small- and medium-sized enterprises;

g) Innovative startup enterprises as defined by laws;

h) Contractors with 25% or more of their employees being female; 25% or more of their employees being war invalids and people with disabilities; or 25% or more of their employees being ethnic minorities.

2. Preferences in contractor selection include:

a) Giving higher ranking for eligible contractors in cases where both eligible and ineligible contractors are evaluated equally;

b) Adding points to the evaluation score for eligible contractors in fixed-price method, technical-based, and combined techniques and prices for comparison and ranking;

c) Adding an amount to the bid or to the evaluated price for ineligible contractors in the case of applying the lowest bid method or the evaluation bid method for comparison and ranking;

d) Being given priority in the assessment of capacity, experience and other criteria during the evaluation of bidding dossiers;

dd) Construction and installation bidding packages with the bidding package price not exceeding VND 05 billion shall be reserved for micro-enterprises and small enterprises participating in the bidding. In case the bidding has been organized, if there are no micro-enterprises or small enterprises that satisfy the requirements, a re-bidding may be organized, allowing other enterprises to participate.

3. The application of preferences in contractor selection is regulated as follows:

a) Entities specified at Points a, b, c and g, Clause 1 of this Article are entitled to preferences specified at Point b or c, Clause 2 of this Article when participating in bidding packages for procurement of goods or mixed bidding packages;

b) Entities specified at Points d and dd Clause 1 of this Article are entitled to preferences specified at Point b or c, Clause 2 of this Article when participating in bidding packages for the provision of consultancy and non-consultancy services, construction and installation, and mixed bidding packages subject to international bidding;

c) Entities specified at Point h, Clause 1 of this Article are entitled to preferences specified at Point a, Clause 2 of this Article when participating in bidding packages for the provision of consultancy and non-consultancy services, construction and installation, and mixed bidding packages subject to national bidding;

d) Entities specified at Point e, Clause 1 of this Article are entitled to preferences specified at Points a and dd, Clause 2 of this Article when participating in construction and installation bidding packages subject to national bidding;

dd) In addition to the preferences specified at Points b and c, Clause 2 of this Article, the contractors specified at Points c and g, Clause 1 of this Article are also entitled to the preferences specified at Point d, Clause 2 of this Article when participating in bidding packages for the provision of consultancy services, non-consultancy services, procurement of goods, construction and installation or mixed bidding packages subject to national bidding;

e) For bidding packages for procurement of goods subject to national bidding with at least 03 manufacturers for 01 domestically-originated goods that satisfy technical, quality and price requirements, the project owner shall decide to require the contractor to offer domestically-originated goods for this item.

4. Entities eligible for preferences in investor selection are:

a) Investors proposing technology solutions to minimize environmental pollution for projects falling under the category with high potential for adverse environmental impact as stipulated by the law on environmental protection;

b) Investors committed to transferring technologies included in the priority technology list for investment and development in accordance with the law on high technologies, or on the List of technologies encouraged for transfer in accordance with the law on technology transfer.

5. Preferences in investor selection include:

a) Giving higher ranking for eligible investors in cases where both eligible and ineligible investors are evaluated equally;

b) Adding points to the total score for comparison and ranking.

6. The Government shall detail this Article.

Article 11. International bidding

1. International bidding to select contractors may be organized when any of the following conditions is satisfied:

a) The donor that finances the project or bidding package requests the organization of international bidding in a treaty or loan agreement;

b) Bidding packages for the provision of consultancy services, non-consultancy services, construction and installation, or mixed bidding packages where domestic contractors are unable to satisfy the requirements for performing the bidding packages or bidding packages are pre-qualified or invited for interest or previous national open bidding but no contractor participated;

c) Bidding packages for the provision of consultancy services where the competent person deems it necessary to involve foreign contractors in order to improve the quality of bidding packages or projects. The competent person shall decide and take responsibility for the decision to organize the international bidding;

d) The bidding package is for procurement of goods which cannot be domestically produced or can be domestically produced but fail to satisfy one of the technical, quality and price requirements. No international bidding may be organized for common goods which have been imported and offered for sale in Vietnam.

2. The organization of international bidding to select investors shall be carried out for business investment projects specified in Clause 3, Article 2 of this Law, except for the following cases:

a) Projects in sectors or trades not open to market access for foreign investors in accordance with the investment law;

b) Projects requiring national bidding due to the requirements of ensuring national defense and security, social order and safety;

c) Projects implemented in restricted land-use areas, coastal restricted areas for foreign investors or foreign-invested economic organizations, as regulated by the land law and relevant laws;

d) Projects with a total investment capital of less than VND 800 billion;

dd) Projects not falling under the cases specified at Points a, b, c, and d of this Clause and have already publicly announced and invited interest for international bidding, but no foreign investors participated.

Article 12. Languages used in bidding

1. The language used in national bidding is Vietnamese.

2. The language(s) used in international bidding is English or both Vietnamese and English. In case the language used in the dossier of invitation for expression of interest, dossier of invitation to prequalification, bidding dossier, dossier of requirements is Vietnamese and English, the contractor or investor may choose either Vietnamese or English to participate in the bidding.

Article 13. Currencies of bids

1. For national bidding, contractors or investors may only offer bids in Vietnam dong.

2. For international bidding:

a) Bidding dossier, dossier of requirements must specify no more than 03 currencies of bids in bid dossiers or dossiers of proposals;

b) In case the bidding dossier provides that contractors or investors may offer bids in 02 or 03 currencies, upon evaluation of bid dossiers, such currencies must be converted into one certain currency. In case such currencies of bids include Vietnam dong, they must be converted into Vietnam dong. The bidding dossier must specify the exchange currency, time and grounds for determination of exchange rate for conversion;

c) For domestic expenses related to the execution of the bidding package, project or business investment project, contractors or investors shall offer bids in Vietnam dong;

d) For overseas expenses related to the execution of the bidding package, project or business investment project, contractors or investors may offer bids in a foreign currency or Vietnam dong.

Article 14. Bid security

1. The contractor or investor must take one of the following measures to ensure the contractor's or investor's liability for participation in the bidding for a given period according to requirements of the bidding dossier:

a) Deposit;

b) Submit a letter of guarantee from a domestic credit institution or foreign bank branch established under Vietnamese law;

c) Submit the guarantee insurance certificate of the domestic non-life insurance enterprise or branch of foreign non-life insurance enterprise established under Vietnamese law.

2. Bid security shall be applied in the following cases:

a) Open bidding, restricted bidding, competitive offer for bidding packages to provide non-consultancy services, procure goods, for construction and installation, and mixed bidding packages;

b) Open bidding and restricted for selection of investors.

3. Contractors or investors shall provide bid security according to the provisions of the bidding dossiers. In case the method of two-stage bidding is applied, contractors and investors shall provide bid security in the second stage.

4. Based on the scale and nature of each project, business investment project, specific bidding package, the bid security value in the bidding dossier is prescribed as follows:

a) From 1% to 1.5% of the bidding package price for construction and installation or mixed bidding packages with a bidding package price of not exceeding VND 20 billion, procurement of goods, non-consultancy services bidding packages with a bidding package price of not exceeding VND 10 billion;

b) From 1.5% to 3% of the bidding package price for bidding packages not falling into the cases specified at Point a of this Clause;

c) From 0.5% to 1.5% of the total investment capital of the business investment project for investor selection.

5. The validity period of bid security stated in the bidding dossier is equal to that of bid dossiers plus 30 days.

6. In case of extension of the validity duration of bid dossiers after the time of bid closing, the bid solicitor shall request contractors or investors to extend the validity duration of the bid security correspondingly. In this case, contractors or investors shall extend the validity duration of the bid security as requested and may not change the contents of the submitted bid dossiers. In case a contractor or an investor refuses to do so, its bid dossier will be invalid and eliminated. The bid solicitor shall refund or release the bid security to the contractor or investor within 14 days after receiving the written refusal to extend the validity duration of the bid security.

7. In case of partnership for participation in bidding, each partner may provide a separate bid security or agree to let a partner provide bid security for itself and for other partners. The total value of bid security must not be lower than the value required in the bidding dossier. In case a partner violates Clause 9 of this Article, the bid security of all partners in the partnership will not be refunded.

8. The bid solicitor shall refund or release the bid security for contractors or investors that are not selected within a time limit prescribed in the bidding dossier which must not exceed 14 days after the contractor or investor selection results are approved. For selected contractors or investors, bid security shall be returned or released upon the effective date of the contract.

9. Bid security is not refunded in the following cases:

a) After the time of bid closing and during the effective time of the bid dossier, the contractor or investor withdraws the bid dossier or submits a refusal letter to perform one or more proposed tasks in the bid dossier as required by the bidding dossier;

b) The contractor or investor violates acts of violation specified in Article 16 of this Law or violates the bidding law, resulting in the cancellation of the bid as prescribed at Points d and dd, Clause 1, Points d and Point dd, Clause 2, Article 17 of this Law;

c) Contractors or investors fail to provide the contract performance security as prescribed in Articles 68 and 75 of this Law;

d) The contractor fails to negotiate or refuses to negotiate the contract (if any) within 05 working days for national bidding and 10 days for international bidding from the date of receiving the notice of invitation to negotiate the contract or has negotiated the contract but refuses to complete and sign the contract negotiation minutes, except for force majeure cases;

dd) The contractor fails to negotiate or refuses to complete the contract, framework agreement within 10 days for national bidding and 20 days for international bidding from the date of receiving notice of bid winning from the bid solicitor, except for force majeure cases;

e) The contractor fails to negotiate or refuses to sign the contract or framework agreement within 10 days for national bidding and 20 days for international bidding from the date of completion of the contract, framework agreement, except for force majeure cases;

g) The investor fails to negotiate or refuses to complete the contract within 15 days for national bidding and 30 days for international bidding from the date of receiving notice of bid winning from the bid solicitor, except for force majeure cases;

h) The investor fails to negotiate or refuses to sign the contract within 15 days for national bidding and 30 days for international bidding from the date of completion of the contract, except for force majeure cases.

10. In case contractors and investors commit violations of the bidding law and consequently are not entitled to refund of bid security or contract performance security prescribed in Clause 9 of this Article, Clause 6, Article 68 and Clause 4, Article 75 of the this Law, unreturned bid security and contract performance security amounts shall be used and managed as follows:

a) For projects or bidding packages funded with the state budget, such amounts shall be remitted into the state budget in accordance with the law on the state budget;

b) For projects or bidding packages not funded with the state budget or business investment projects, such amounts shall be used under the financial regulations of the project owner or competent agency;

c) In case the bid solicitor is a bidding consultancy unit selected by the project owner, such amounts must be returned to the project owner. The project owner shall manage and use such amounts in accordance with Points a and b of this Clause.

Article 15. Expenses for contractor and investor selection

1. Expenses for contractor selection are regulated as follows:

a) Dossiers of requirements or bidding dossiers for national bidding, dossiers of invitation for expression of interest and dossiers of invitation to prequalification shall be freely distributed on the national bidding network;

b) Bidding dossiers for international bidding shall be published on the national bidding network; contractors shall pay for the electronic version of bidding dossiers when submitting bid dossiers;

c) Project owners, bid solicitors shall bear the expenses for posting information on bidding, expenses related to the organization of contractor selection;

d) Expenses related to the preparation of dossiers of expression of interest, dossiers for participation in prequalification, bid dossiers or dossiers of proposals, bidding participation and expenses for handling petitions (if any) are borned by contractors.

2. Expenses for investor selection are regulated as follows:

a) Dossiers of invitation for expression of interest and bidding dossiers for national bidding shall be freely distributed on the national bidding network;

b) Bidding dossiers for international bidding shall be published on the national bidding network. Investors shall pay for the electronic version of bidding dossiers when submitting bid dossiers;

c) Bid solicitors shall bear expenses for posting information on investor selection and expenses related to the investor selection organization;

d) Investors shall bear expenses related to the preparation of dossiers of registration of project implementation, bid dossiers, bidding participation and expenses for handling petitions (if any).

3. The Government shall detail this Article.

Article 16. Prohibited acts in bidding activities

1. Giving, taking or acting as a go-between for bribes.

2. Abusing positions and powers to illegally influence or intervene in bidding activities in any form.

3. Committing bid rigging, including the following acts:

b) Arranging, negotiating or coercing one or more parties to prepare or withdraw bid dossier so as to help one party win the bid;

b) Arranging, agreeing to refuse to provide goods or services, not signing subcontracting contracts, or engaging in other agreements to limit competition so as to help one party to the win the bid;

c) Contractors, investors who are capable, experienced, and meet the requirements of bidding dossiers intentionally fail to provide documents to demonstrate their capability and experience when requested by the bid solicitor to clarify bid dossiers or when requested to verify documents, with the intention to create favorable conditions for one party to win the bid;

4. Committing fraud, including the following acts:

a) Forging or falsifying information, dossiers and documents in bidding;

b) Deliberately providing untrue information in dossiers of expression of interest, dossiers for participation in prequalification, dossiers for registration of business investment project implementation, bid dossiers or dossiers of proposals to falsify the contractor or investor selection result.

5. Making obstacles, including the following acts:

a) Destroying, falsifying, changing or concealing evidence, or making untrue reports; intimidating or making suggestions to any party so as to prevent the identification of acts of giving, taking or acting as a go-between for bribes or committing collusion by competent supervision, inspection, examination or audit agencies;

b) Obstructing competent persons, project owners, bid solicitors, contractors and investors in contractor, or investor selection;

c) Obstructing competent agencies to supervise, examine, inspect and audit bidding activities;

d) Deliberately making false complaints, denunciations or petitions to obstruct bidding activities;

dd) Committing acts of violating the law on network safety and security in order to interfere with or obstruct the online bidding.

6. Failing to ensure fairness and transparency, including the following acts:

a) Participating in bidding in the capacity as contractors or investors for bidding packages or business investment projects for which ones also act as bid solicitors or project owners or perform the tasks of bid solicitors or project owners in contravention of this Law;

b) Participating in the making and appraisal of dossiers of invitation for expression of interest, dossiers of invitation to prequalification, bidding dossiers and dossiers of requirements for the same bidding package or business investment project;

c) Participating in the evaluation of bid dossiers and dossiers of proposals and, at the same time, participating in the appraisal of the contractor or investor selection result for the same bidding package or business investment project;

d) Bid solicitors' or project owners' staff members personally participating in the contractor or investor selection or joining expert teams or contractor or investor selection result appraisal teams, persons having family relationships of competent persons, heads of project owners or bid solicitors of bidding packages or business investment projects as prescribed by the Law on Enterprises participating in or acting as at-law representatives of contractors or investors participating in bidding for such bidding packages or projects;

dd) Contractors participating in goods procurement, construction and installation, or non-consultancy service bidding packages for which they have previously provided consultancy services for preparation, verification and appraisal of cost estimates, technical design, construction drawing design and front-end engineering design (FEED design); preparation and appraisal of dossiers of invitation for prequalification and bidding dossiers; assessment of dossier for participation in prequalification and bid dossiers; inspection of goods; appraisal of contractor selection results; supervision of contract performance;

e) Within 12 months after resigning from his/her job as a leader or manager in an agency or organization, an individual participating in bidding for bidding packages under a project or business investment project of which such agency or organization acts as the project owner or bid solicitor;

g) A contractor providing supervision consultancy and appraisal consultancy services for the same bidding package;

h) Applying forms of selecting contractors or investors other than open bidding when failing to satisfy the conditions for application of such forms as prescribed in this Law;

i) Stating specific requirements on the labels or origin of goods in bidding dossiers for goods procurement or construction bidding packages or mixed bidding packages when applying the form of open bidding or restricted bidding, competitive offers, except for the cases specified at Point e, Clause 3, Article 10, Clause 2, Article 44 and Clause 1, Article 56 of this Law;

k) Stating conditions in bidding dossiers to limit the participation of contractors or investors or to create advantages for one or several contractors or investors causing unfair competition, violating the provisions of Clause 3, Article 44 and Clause 2, Article 48 of this Law;

l) Dividing procurement projects and cost estimates into bidding packages for the purpose of appointing contractors; dividing procurement projects and cost estimates in order to limit the participation of contractors.

7. Disclosing the documents and information in the course of contractor or investor selection, except the cases provided at Point b, Clause 8 and Point g, Clause 9, Article 77; Clause 11, Article 78; Point h, Clause 1, Article 79; Clause 4, Article 80; Clause 4, Article 81; Clause 2, Article 82; and Point b, Clause 4, Article 93 of this Law, including:

a) Contents of dossiers of invitation for expression of interest, dossiers of invitation to prequalification, bidding dossiers or dossiers of requirements before the prescribed time of issuance;

b) Contents of dossiers of expression of interest, dossier for participation in prequalification, dossiers for registration of business investment project implementation, bid dossiers, dossiers of proposals; request for clarification of dossiers of expression of interest, dossier for participation in prequalification, dossiers for registration of business investment project implementation, bid dossiers, dossiers of proposals of the bid solicitor and replies of contractors and investors in the process of evaluating dossiers of expression of interest, dossier for participation in prequalification, dossiers for registration of business investment project implementation, bid dossiers, dossiers of proposals; reports of bid solicitors, reports of the expert team, appraisal reports, reports of consultancy contractors, reports of relevant professional agencies in the process of selection of contractors or investors; records, minutes of bid evaluation meetings, comments on and assessments of each dossier of expression of interest, dossier for participation in prequalification, dossier for registration of business investment project implementation, bid dossier or dossier of proposals before being publicized as prescribed;

c) The contractor or investor selection result before such result is allowed to be publicized according to regulations;

d) Other documents in the contractor and investor selection process that are identified as containing state secret content as prescribed by law.

8. Transferring contracts in the following cases:

a) A contractor transferring to another contractor part of works under a bidding package, beyond the maximum value allocated for subcontractors and the workload for special subcontractors stated in the contract;

b) A contractor transferring to another contractor part of works under a bidding package not exceeding the maximum value of the work allocated for subcontractors as stated in the contract but beyond the scope of work proposed in the bid dossier and dossiers of proposals without approval from the project owner or supervision consultants;

c) The project owner or the supervision consultant approves the contractor to transfer the work specified at Point a of this Clause;

d) The project owner or the supervision consultant approves the contractor to transfer the work specified at Point b of this Clause that exceeds the maximum value of the work for the subcontractor stated in the contract.

9. Organizing the selection of contractors when the capital source is not determined as prescribed in Clause 3, Article 39 of this Law.

Article 17. Bid cancellation

1. Cases of bid cancellation for contractor selection include:

a) All dossiers of interest, dossiers for participation in prequalification and bid dossiers and dossiers of proposals fail to meet requirements of dossiers of invitation for expression of interest, dossiers of invitation to prequalification, bidding dossiers and dossiers of requirements;

b) Changes in investment objectives and scope in the approved investment decision leading to changes in the volume of work and evaluation criteria stated in dossiers of invitation for expression of interest, dossiers of invitation to prequalification, bidding dossiers and dossiers of requirements;

c) Dossiers of invitation for expression of interest, dossiers of invitation to prequalification, bidding dossiers and dossiers of requirements are not compliant with this Law or other relevant laws, making selected contractors fail to meet requirements for project implementation;

d) The selected contractors commit the prohibited acts specified in Article 16 of this Law;

dd) Organizations and individuals other than the selected contractors commit the prohibited acts specified in Article 16 of this Law, leading to distortion in the contractor selection results.

2. Cases of bid cancellation for investor selection include:

a) All bid dossiers fail to meet requirements of bidding dossiers;

b) Changes in objectives, scale, location, investment capital, time limit for implementation of business investment projects due to unforeseen reasons, leading to changes in evaluation criteria in the issued bidding dossier;

c) Bidding dossiers contain one or several contents that do not compliant with this Law or other relevant laws, leading to misleading results of investor selection or making selected investors fail to meet requirements for business investment project implementation;

d) The selected investors commit the prohibited acts specified in Article 16 of this Law;

dd) Organizations and individuals other than the selected investors commit the prohibited acts specified in Article 16 of this Law, leading to distortion in the investor selection results.

3. Bid cancellation shall be effected from the date of issuance of dossiers of invitation for expression of interest, dossiers of invitation to prequalification, bidding dossiers or dossiers of requirements to before signing the contract or framework agreement for centralized procurement.

4. Organizations and individuals violating the provisions of law, leading to the cancellation of bids according in accordance with Points c, d, dd, Clause 1 and Points c, d, dd, Clause 2 of this Article must compensate the expenses to the parties involved.

Article 18. Cessation of bidding, non-recognition of the results of selection of contractors and investors

1. When there is evidence that organizations or individuals participating in bidding activities commit acts specified in Article 16 of this Law or violate relevant laws, leading to failure to ensure competition and fairness, transparency and economic efficiency or falsifying the results of contractor or investor selection, the competent person shall take one or more of the following measures:

a) To cease the bidding to temporarily suspend the selection of contractors and investors in order to immediately remedy the violations that have occurred. To cease the bidding that has been carried out in the process of organizing the selection of contractors and investors until the results of the selection of contractors and investors are approved;

b) To refuse to recognize the results of contractor and investor selection during the process of organizing the selection of contractors and investors and the process of contract implementation;

c) To handle violations in bidding in accordance with Article 87 of this Law.

2. A document on bidding cessation or refusal to recognize contractor or investor selection results must clearly state the reason, contents, measures and time limit for remedying the violation.

Article 19. Expert and appraisal teams

1. An expert team consists of capable and experienced individuals established or assigned by the project owner or the bidding consultation unit for contractor selection, or by the bid solicitor for investor selection, or assigned to perform one or several tasks, including preparation of dossiers of invitation for expression of interest, dossiers of invitation to prequalification, bidding dossiers, dossiers of requirements; evaluation of dossiers of interest, dossiers for participation in prequalification, bid dossiers, dossiers of proposals, dossiers for registration of project implementation; implementation of other tasks during the selection of contractors and investors.

2. An appraisal team consists of capable and experienced individuals established or assigned by a competent person, the project owner or the bidding consultancy unit to examine and assess compliance with legal regulations in one or several contents: master plan on contractor selection, contractor selection plan; dossiers of invitation for expression of interest, dossiers of invitation to prequalification, bidding dossiers or dossiers of requirements and results of invitation for expression of interest, results of prequalification, results of selection of contractors and investors.

3. Members of an expert or appraisal team must have at least 03 years of working experience in one of the fields related to the legal, technical and financial contents of the bidding package or business investment project.

4. The Government details the capacity and experience of members of expert and appraisal teams.

Chapter II

FORMS AND METHODS OF SELECTION OF CONTRACTORS, INVESTORS

Section 1. FORMS OF CONTRACTOR SELECTION

Article 20. Forms of contractor selection

1. Forms of contractor selection include:

a) Open bidding;

b) Restricted bidding;

c) Contractor appointment;

d) Competitive offer;

dd) Direct procurement;

e) Self-execution;

g) Community participation in execution;

h) Price negotiation;

i) Selection of contractors in special cases.

2. In cases where other forms of contractor selection arise beyond the provisions of Clause 1 of this Article, with advantages, using advanced and modern

electronic means, the government shall regulate the forms, procedures, and subjects appropriate with the new features of the national bidding network, ensuring competition, fairness, transparency, and economic efficiency in the bidding.

Article 21. Open bidding

1. Open bidding means a form of contractor selection in which the number of participating contractors is not limited.

2. Open bidding may apply to all bidding packages, except the cases specified in Articles 22, 23, 24, 25, 26, 27, 28 and 29 of this Law. In cases where open bidding is not conducted, the document submitted for the contractor selection plan approval must clearly state the reasons for not conducting open bidding. The competent person shall decide and take responsibility for not applying open bidding.

Article 22. Restricted bidding

Restricted bidding is a form of contractor selection in which only a number of contractors meeting the requirements of a bidding package are invited to participate in the bidding, applied in the following cases:

1. Bidding packages having high technical requirements or involving special techniques which can be satisfied by only some contractors.

2. The donor that finances the project or bidding package requests the restricted bidding in an treaty or foreign loan agreement.

Article 23. Contractor appointment

1. Contractor appointment shall be applied in the following cases:

a) Emergency bidding packages which need to be executed to defend the national sovereignty and security; bidding packages which need to be executed to immediately remedy or promptly handle consequences caused by natural disasters, fires, unexpected accidents, incidents, disasters or other force majeure events;

b) Bidding packages for the provision of consultancy and non-consultancy services, goods, construction and installation need to be implemented immediately to avoid causing harm to the lives and properties of the local community or to avoid serious impact on adjacent works;

c) Bidding packages for the provision of consultancy and non-consultancy services, medicines, chemicals, examination materials, medical equipment, components, accessories, means, construction and installation need to be deployed immediately to serve epidemic prevention and control or to maintain the operation of medical examination and treatment facilities in emergency situations, to avoid harm to people's lives and health; bidding packages for procurement of medicines, chemicals, testing supplies, medical equipment, components, accessories to give first aid to patients in an emergency state in accordance with the Law on Medical Examination and Treatment in case the medical examination and treatment facilities do not have sufficient medicines, chemicals, testing supplies, medical equipment, components, accessories; bidding packages for procurement of medicines and medical equipment with only one manufacturer in the market;

d) Bidding packages to be performed to protect state secrets;

dd) Bidding packages for the provision of consultancy services must be purchased from contractors that have been performed before due to the need to ensure compatibility of technology and copyright that cannot be purchased from other contractors; bidding packages for procurement of non-consultancy goods and services must be purchased from contractors that have been done before or from manufacturers or their agents due to the need to ensure compatibility of technology and copyright with existing equipment, machinery, software, services, or due to warranty conditions of the contractor, manufacturer that cannot be obtained from other contractors or manufacturers;

e) Bidding packages of the nature of research, testing, purchase of intellectual property rights, purchase of broadcast rights; bidding packages for transporting national reserve commodities for relief and aid in the case requiring immediate delivery;

g) Bidding packages for consultancy services for the preparation of feasibility study reports and construction designs designated for authors of selected architectural solutions who meet the competence requirements under the construction law; bidding packages for construction and restoration of monuments, reliefs, monumental paintings and works of art associated with copyright from the creative process to the execution; bidding packages for construction planning consultancy services assigned to authors of construction planning ideas or projects selected through competitions;

h) Bidding packages for consultancy, construction and relocation of technical infrastructure works in service of ground clearance; bidding packages for consultancy, clearance of bombs, mines, and explosives to prepare for construction site;

i) Bidding packages with only one eligible contractor in the market due to technology solution requirements;

k) Bidding packages belonging to important national projects applying the form of contractor appointment according to the National Assembly's resolution when deciding on project investment policies;

l) Bidding packages for leasing temporary storage warehouses; bidding packages for leasing transportation, loading and unloading of goods temporarily held at seaports, concentrated cargo inspection sites when there is only one service provider in the port; bidding packages for importing sports weapons to serve sports training, competition clubs, schools, sports training centers on an annual basis;

m) Bidding packages within the procurement estimate with a bidding package price ranging from over VND 50 million to VND 100 million; bidding packages within investment projects of state enterprises, enterprises where the state enterprise holds 100% of charter capital and investment projects under the Law on Public Investment, including: consultancy service provision bidding packages with the bidding package price within the limit of not more than VND 500 million, the bidding packages for non-consultancy, goods, construction and installation, and mixed bidding packages with the bidding package price within the limit of not more than VND 1 billion.

In case it is necessary to adjust the limit specified at this Point to suit socio-economic conditions and state management requirements, the Government shall submit it to the National Assembly Standing Committee for consideration and decision.

2. For the bidding packages specified at Points a, b and c, Clause 1 of this Article, project owners shall decide and take responsibility for the appointment of contractors according to the shortened process for capable and experienced contractors to immediately carry out the bidding packages. Within 15 days from the date of starting the implementation of the bidding package, the parties must complete the contractor appointment procedure including the following steps: preparation and sending of draft contracts to contractors; finalization of contracts; submission, approval and publicization of contractor selection results; signing and management of contracts.

3. Contractor appointment for a bidding package specified at Points d, dd, e, g, h, i, k, l and m, Clause 1 of this Article must fully satisfy the following conditions:

a) The investment decision has been approved for projects, except bidding packages for consultancy in service of project preparation;

b) The contractor selection plan has been approved;

c) Capital has been allocated to execute the bidding package;

d) The cost estimate has been approved as prescribed, except for EP, EC, EPC or turnkey bidding packages;

4. For bidding packages or procurement contents with a price not exceeding VND 50 million, heads of procurement agencies or units shall take self-responsibility for deciding on procurement to ensure savings, and efficiency, and take personal responsibility for their decision without the need to establish, review,

and approve contractor selection plans, bidding package estimates, or sign contracts with suppliers, but must ensure the invoice and documentation regime as prescribed by law.

5. The time limit for carrying out the contractor appointment is 45 days from the date of approval of dossiers of requirements to the date of contract signing. For large-sized or complicated bidding packages, that time limit is 90 days;

6. For bidding packages specified in Clause 1 of this Article and satisfying the conditions for contractor appointment specified in Clause 3 of this Article to which other forms of contractor selection specified in Articles 21, 22, 24 and 25 of this Law may still apply, the competent person is encouraged to decide to apply other forms of contractor selection.

7. The Government shall detail Point c, Clause 1 of this Article.

Article 24. Competitive offer

Competitive offer applies to bidding packages with a value of not exceeding VND 5 billion and being:

1. An ordinary and simple non-consultancy service bidding package;

2. A bidding package to procure ordinary goods which are available on the market with standardized technical properties and of equivalent quality;

3. A simple work construction bidding package with approved construction drawing designs.

4. Mixed bidding packages for goods supply and construction and installation, in which construction and installation contents satisfy the provisions of Clause 3 of this Article.

Article 25. Direct procurement

1. Direct procurement applies to bidding packages to procure similar goods under the same project and cost estimate of the same project owner or another project owner, and satisfying the provisions of Clause 2 of this Article.

2. Direct procurement may be conducted when following conditions are fully satisfied:

a) The contractor has won at open bidding or restricted bidding and has signed a contract for execution of the previous bidding package;

b) The investor may only apply direct procurement once for goods in the bidding package and the volume of each work item less than 130% compared to the volume of corresponding items in the previously signed contract package, excluding the volume of the buy-back option (if any);

c) The unit prices of jobs of the bidding package subject to direct procurement do not exceed those of corresponding jobs of a similar bidding package for which a contract was signed and consistent with the market price at the time of contract completion;

d) The period from the date of signing the contract for the previous bidding package to the date of approving the direct procurement results does not exceed 12 months.

3. In case the contractor performing the previous contract is unable to continue to execute the direct procurement bidding package, direct procurement will apply to another contractor if such contractor fully satisfies requirements on capacity, experience, techniques and prices according to the bidding dossier and the previous contractor selection result.

Article 26. Self-execution

1. The project owner directly managing and using bidding packages may self-execute bidding packages under projects and cost estimates when fully satisfying the following conditions:

a) Having functions, tasks, fields of activity or business sectors suitable to the requirements of the bidding package;

b) Having technical, financial and experience capacity to meet the requirements of the bidding package;

c) Having a feasible plan to mobilize personnel, machinery and equipment to meet the requirements on the progress of the bidding package.

2. Project owners shall directly implement the bidding package or assign the dependent accounting unit, department or section of that organization for implementation.

3. Organizations and units specified in Clause 2 of this Article may not assign to other organizations or individuals the volume of work valued at 10% or more or over VND 50 billion on the value of the work specified in the assignment agreement.

Article 27. Community participation in execution

Communities or qualified workers' teams in localities where there are bidding packages may be assigned to execute the whole or part of such bidding packages under national target programs and public investment programs in which the State and the people jointly participate, with a bidding package price of not exceeding VND 05 billion.

Article 28. Price negotiation

1. Price negotiation shall be applied to the following bidding packages:

a) Purchasing brand-name medicines with reference biological products;

b) Purchasing medicines, medical equipment, and testing supplies of which there are only one or two manufacturers.

2. The Minister of Health shall decide on the application of the form of price negotiation, promulgate the list of drugs, medical equipment and testing supplies eligible for the form of price negotiation and prescribe the process and procedures for contractor selection for bidding packages applying the form of price negotiation.

Article 29. Selection of contractors in special cases

1. Contractor selection in special cases shall be applied to bidding packages in which the form of contractor selection cannot be applied in accordance with Articles 21, 22, 23, 24, 25, 26, 27 and 28 of this Law, including:

a) Bidding packages for procurement of medicines and vaccines in the course of testing, with specific requirements of the manufacturer in terms of conditions for procurement, payment, guarantee, security and other conditions during the contract performance;

b) Bidding packages for procurement of medicines, vaccines and medical equipment through international organizations;

c) Bidding packages with requirements to ensure national defense, security, foreign affairs, and territorial borders;

d) Selection of lawyers to provide legal services to protect the rights and interests of the State of Vietnam, state agencies in foreign or international jurisdictions;

dd) Bidding packages on intensive training for state agencies and public non-business units directly conducted abroad by foreign training institutions; procurement of air tickets for domestic and international business trips; bidding packages for specialized professional training and retraining for cadres and civil servants that require inviting competent or authorized agencies or units with specialized training functions as designated by competent agencies;

e) Bidding packages for implementation of political tasks assigned by the Party and State, including: propaganda on printed newspapers, electronic newspapers, radio, television and other mass media in case agencies, units that are assigned propaganda funds directly sign contracts with these agencies for implementation; organization of special art programs; co-production of films;

g) Bidding packages for production and installation of stages in service of broadcasting program production associated with implementation ideas; renting venues to organize the production and recording of programs of high artistic value;

h) Bidding packages for providing printing services, providing stamps, receipts and sealing according to the provisions of law on tax and customs administration; bidding packages for buying sniffer dogs, training sniffer dogs, buying drugs, explosives, samples impregnated with drug vapor and explosives to train sniffer dogs;

i) In case the project or bidding packages with special conditions on the process, procedures, criteria for contractor selection, and conditions for contract signing and performance are not specified at Points a, b, c, d, dd, e, g and h of this Clause, the Government shall submit them to the National Assembly Standing Committee for decision on the addition of the form of contractor selection in special cases.

2. Competence to decide on contractor selection in special cases is prescribed as follows:

a) The Prime Minister shall decide on the selection of contractors specified at Point c, Clause 1 of this Article;

b) The Minister of Health shall decide and take responsibility for the selection of contractors specified at Points a and b, Clause 1 of this Article;

c) Ministers, heads of ministerial-level agencies, government-attached agencies, other central agencies, Chairpersons of provincial-level People's Committees shall decide and take responsibility for the selection of contractors specified at Points d, dd, e, g and h, Clause 1 of this Article.

3. The written request for approval of the contractor selection plan in special cases must clearly state the reasons for not being able to satisfy the conditions on contractor selection specified in Articles 21, 22, 23, 24, 25, 26, 27 and 28 of this Law.

4. The Government details dossiers, processes and procedures for contractor selection in special cases.

Section 2. CONTRACTOR OR INVESTOR SELECTION METHODS

Article 30. Single-stage single-envelope method

1. The single-stage single-envelope method applies to:

a) Open bidding or restricted bidding for bidding packages to provide non-consultancy services; procurement of goods or for construction and installation, and mixed bidding packages, except for the case specified at Point b, Clause 1, Article 31 of this Law;

b) Competitive offer for bidding packages to provide non-consultancy services or procure goods or for construction and installation, mixed bidding packages for goods supply and construction and installation;

c) Contractor appointment for bidding packages to provide consultancy services, non-consultancy services, to procure goods or for construction and installation, and mixed bidding packages;

d) Direct procurement for bidding packages to procure goods.

2. Contractors shall submit bid dossiers or dossiers of proposals which consist of both technical and financial proposals according to requirements of bidding dossiers or dossiers of requirements.

3. The opening of bids shall be conducted only once for all bid dossiers or dossiers of proposals.

Article 31. Single-stage two-envelope method

1. The single-stage two-envelope method applies to:

a) Open bidding or restricted bidding for consultancy service provision bidding packages;

b) Open bidding or restricted bidding for bidding packages to provide non-consultancy services; procurement of goods or for construction and installation, and mixed bidding packages with high technical requirements in accordance with the law on science and technology.

2. Contractors shall submit simultaneously separate dossiers of technical proposals and dossiers of financial proposals according to requirements of bidding dossiers.

3. The opening of bids shall be conducted twice. Dossiers of technical proposals shall be opened right after the time of bid closing. Dossiers of financial proposals shall be opened for contractors that satisfy technical requirements for evaluation.

Article 32. Two-stage single-envelope method

1. The two-stage single-envelope method applies to open bidding or restricted bidding for bidding packages to procure goods or for construction and installation, and mixed bidding packages, for which specific technical requirements have not yet been determined accurately and completely for the packages at the time of bidding organization.

2. In the first stage, contractors shall submit technical proposals excluding the bid required by the bidding dossiers based on the basic design or technical specifications of the bidding package. Contractors are allowed to propose an

alternative plan for the content required in the bidding dossiers but must offer a separate plan together with the main technical plan as required by the bidding dossiers. Dossiers of technical proposals shall be opened immediately after the time of bid closing. Contractors whose technical proposals meet the requirements of the first-stage bidding dossiers shall be invited to participate in the second-stage bidding.

3. In the second-stage, the contractor selection process is carried out as follows:

a) Contractors on the list of qualified candidates in the first stage are invited to clarify the dossiers of technical proposals. The content of clarification of the technical proposal includes the request by the project owner and the bid solicitor to the contractor to adjust the first-stage technical proposal. Contractors are allowed to give opinions on the contents of the bidding dossiers;

b) On the basis of the content of clarification of the technical proposal with each contractor, the first-stage bidding dossiers shall be adjusted and supplemented in terms of constructions to contractors, evaluation criteria, technical requirements, contract conditions, and other contents to form the second-stage bidding dossiers, including accepted technical discrepancies of contractors, accepted proposals for alternative solutions of contractors;

c) Contractors shall submit bid dossiers, including technical proposals and financial proposals as required in the second-stage bidding dossiers, with bid and bid security on the basis of the adjusted content of the first-stage technical proposal under Point a of this Clause. The opening of bids shall be conducted only once for all bid dossiers.

Article 33. Two-stage two-envelope method

1. The two-stage two-envelope method applies to open bidding or restricted bidding for bidding packages to procure goods or for construction and installation, and and mixed bidding packages involving new, complex and particular techniques and technologies, for which specific technical requirements have not yet been determined accurately and completely for the packages at the time of bidding organization.

2. In the first stage, contractors shall submit technical proposal dossiers, excluding the bid required by the bidding dossiers based on the basic design or technical specifications of the bidding package. Contractors are allowed to propose an alternative plan for the content required in the bidding dossiers but must offer a separate plan together with the main technical plan as required by the bidding dossiers. Dossiers of technical proposals shall be opened right after the time of bid closing. Contractors whose technical proposals meet the requirements of the first-stage bidding dossiers shall be invited to participate in the second-stage bidding.

3. In the second stage, the contractor selection process is carried out as follows:

a) Contractors on the list of qualified candidates in the first stage shall be invited to clarify the technical proposal dossiers. The content of clarification of the technical proposal includes the request by the project owner and the bid solicitor to the contractor to adjust the first-stage technical proposal. Contractors are allowed to give opinions on the contents of the bidding dossiers;

b) On the basis of the content of clarification of the technical proposal with each contractor, the first-stage bidding dossiers shall be adjusted and supplemented in terms of constructions to contractors, evaluation criteria, technical requirements, contract conditions, and other contents to form the second-stage bidding dossiers, including accepted technical discrepancies of contractors, accepted proposals for alternative solutions of contractors;

c) Contractors shall submit bid dossiers including separate technical proposals and financial proposals as required in the second-stage bidding dossiers, including bids and bid security. Financial proposal dossiers are offered in correspondence with the main technical proposal plans of the contractors. In case the contractors offer an alternative technical plan, the financial proposal for this alternative plan must be attached. The opening of bids shall be conducted twice. Dossiers of technical proposals shall be opened right after the time of bid closing. Dossiers of financial proposals shall be opened for contractors that satisfy technical requirements for evaluation.

Section 3. FORMS AND METHODS OF INVESTOR SELECTION

Article 34. Forms of investor selection

1. Open bidding:

Open bidding is applied to business investment projects in which the number of participating investors is not limited.

2. Restricted bidding:

Restricted bidding is applied to business investment projects with high technical and technological requirements or with specific characteristics as prescribed by the laws on sector and field management, in which only a few investors meeting the project requirements are invited to participate in the bidding.

Article 35. Methods of investor selection

1. Single-stage single-envelope method:

a) The single-stage single-envelope method is applied in the case of open bidding, restricted bidding for investor selection;

b) Investors shall submit bid dossiers which consist of both technical and financial proposals according to requirements of bidding dossiers;

c) The opening of bids shall be conducted only once for all bid dossiers.

2. Single-stage two-envelope method:

a) The single-stage two-envelope method is applied in the case of open bidding for investor selection for business investment projects that require valuable architectural works as prescribed by the law on architecture;

b) Investors shall submit simultaneously separate dossiers of technical proposals and dossiers of financial proposals according to requirements of bidding dossiers.

c) The opening of bids shall be conducted twice. Dossiers of technical proposals shall be opened right after the time of bid closing. Dossiers of financial proposals shall be opened for investors that satisfy technical requirements for evaluation.

3. Two-stage single-envelope method:

The two-stage, single-envelope method is applied in the case of open bidding for investor selection to implement business investment projects with specific requirements for socio-economic development of the sector, region, or locality, but specific technical, economic, social, and environmental standards have not been determined.

4. The Government shall detail this Article.

Chapter III

CONTRACTOR SELECTION PLANS

Article 36. Master plan for contractor selection for a project

1. Based on the scale and nature of the project's bidding, the project owner or the project preparation agency may submit to the competent person for consideration and decision on the organization of making and approval of the master plan for contractor selection for the project.

2. The master plan for contractor selection shall be prepared concurrently or independently of the feasibility study report and approved after the feasibility study report is approved.

3. The master plan for contractor selection includes the following main contents:

a) Review of the project implementation context in relation to the bidding activities;

b) Evaluation of the capacity, resources, and experience of the project owner for the implementation of the project's bidding activities;

c) Market analysis and identification of risks in bidding;

d) Specific objectives of bidding activities;

dd) Proposal of the master plan for contractor selection for the project, including: division of the project into bidding packages; forms and methods of contractor selection; types of contracts, principles of risk management division; progress of implementation of main tasks and bidding packages; other contents to be noted in making bidding dossiers, managing contract implementation.

4. The Government shall detail this Article.

Article 37. Principles of making of contractor selection plans

1. A contractor selection plan shall be made for the whole project or procurement cost estimate. For the procurement cost estimate, the contractor selection plan can be made on the basis of the procurement cost estimate of the budget year and the proposed procurement cost estimate for the next budget years. In case conditions for elaboration of a contractor selection plan for the whole project or procurement cost estimate are not fully satisfied, a plan on selection of contractors may be made for one bidding package or several bidding packages for execution first.

2. In case a bidding package has a duration of more than 01 year, the contractor selection plan must clearly state the time for implementation of the bidding package and the price of the bidding package on the basis of the entire duration of the bidding package.

3. A contractor selection plan must clearly specify the number of bidding packages and contents of each bidding package.

4. The approval of the contractor selection plan must be based on the technical nature and implementation order; ensure the uniformity of the project, the procurement cost estimate and the alignment with the approved master plan for contractor selection (if any).

5. A contractor selection plan may be made after the procurement cost estimate or project approval decision is issued or at the same time when the procurement cost

estimate or plan is prepared, or before the project approval decision is issued, for bidding packages which need to be executed before such decision is issued.

Article 38. Making of contractor selection plans

1. Grounds for making a contractor selection plan for a project:

a) The project approval decision and relevant documents, except for the case that the bidding package needs to be implemented before approving the project. For a bidding package which needs to be executed before approving the project, the decision of the head of the project owner, or the head of the unit assigned to prepare the project in case the investor is not yet identified, may be used as a ground;

b) Master plan for contractor selection (if any);

c) The project assigned a medium-term public investment plan, except for urgent public investment projects as prescribed by the law on public investment;

d) The plan on allocating capital for project implementation or capital source for project implementation, for projects other than those specified at Point c of this Clause;

dd) Treaties and loan agreements for projects funded by ODA or concessional loans, except for the case of pre-bid as prescribed in Article 42 of this Law;

e) Relevant legal documents.

2. Grounds for making a contractor selection plan for procurement cost estimate:

a) Standards and norms for using public assets of agencies, organizations, units and cadres, civil servants, public employees and employees (if any);

b) Procurement cost estimate;

c) Relevant legal documents.

Article 39. Contents of an contractor selection plan

1. Name of the bidding package:

The name of the bidding package shows the characteristics, contents and scope of jobs of the bidding package. In case the bidding package consists of many separate parts, the contractor selection plan must state the name and principal contents of each part.

2. Bidding package price:

a) Bidding package price means the value of a bidding package approved in the contractor selection plan. The bidding package price includes all expenses for execution of the bidding package, including also contingency expenses, charges, fees and taxes. The bidding package price shall be updated 28 days before the date of bid opening if necessary;

b) For divided bidding packages, clearly state the bidding package price and the estimated price for each part of the bidding package price;

c) For packages that allow additional purchase options as prescribed in Clause 8 of this Article, the package price does not include the value of the additional purchase option.

The Government shall detail the contents of bidding package prices in the contractor selection plan.

3. Funding sources:

For every bidding package, identified or approved funding sources must be clearly stated. In case of using ODA or concessional loans, the names of donors and structure of funding sources, including financial aid and domestic funds must be clearly stated. For the procurement cost estimate, in case the bidding package has a duration of more than 01 year, the capital source may be determined on the basis of the procurement cost estimate of the budget year and the proposed procurement cost estimate for the next budget years.

4. Contractor selection form and method:

a) For each bidding package, the form and method of contractor selection must be specified; whether to select domestic or international contractors; whether to apply contractor selection through online methods or not;

b) For projects applying the master plan for contractor selection, specify the appropriate content according to the master plan for contractor selection.

5. Time of contractor selection:

The contractor selection plan must clearly state the time for organizing the contractor selection and the starting time for organizing the contractor selection. The starting time of organizing the contractor selection is the time of distribution of bidding dossiers or dossiers of requirements, and shall be indicated in month or quarter of the year. For open bidding whereby the procedures for selection of a short list are applied, the starting time of organizing the contractor selection is the time of distribution of dossiers of invitation for expression of interest or dossiers of invitation to prequalification.

6. Type of contract:

a) A contractor selection plan must specify the type of contract as specified in Article 64 of this Law serving as the basis for compilation of dossiers of invitation for expression of interest, dossiers of invitation to prequalification, bidding dossiers or dossiers of requirements; and for contract signing;

b) For projects applying the master plan for contractor selection, specify the appropriate content according to the master plan for contractor selection.

7. Duration of bidding package implementation:

The time of bidding package implementation is counted from the effective date of the contract to the date of acceptance and completion of the work, goods (including related services, if any), non-consultancy and consultancy services. The time of bidding package implementation is counted according to the number of days, weeks, months or years, excluding the time to complete the warranty obligation, and the time of author supervision for the consultancy bidding package (if any).

8. Additional purchase options (if any):

a) Additional purchase option means the ability of the project owner to purchase additional goods, consultancy services and non-consultancy services of a bidding package in addition to the volume stated in the contract;

b) In case the bidding package applies an additional purchase option, the plan on contractor selection must clearly state the volume, quantity and estimated value of the part of the additional purchase option;

c) Additional purchase options shall be carried out when meeting the following conditions: contractors are selected through open bidding or price negotiation; the additional purchase volume does not exceed 30% of the volume of corresponding items stated in the contract; having an approved cost estimate for the additional purchase volume; the unit price of additionally purchased goods and services must not exceed the unit price of corresponding goods and services in the contract; it is only applicable during the effective duration of the contract.

9. Supervision of bidding activities (if any).

Article 40. Approval of a contractor selection plan for a project

1. A dossier on submission of a contractor selection plan for approval has the following contents:

a) Performed work, including jobs related to the project preparation, and bidding packages already executed with corresponding value, and legal grounds for execution;

b) Work to which none of the contractor selection forms can be applied;

c) Work stated in the contractor selection plan, including jobs and corresponding value constituting bidding packages to be executed in any of the contractor selection forms specified in Articles 21, 22, 23, 24, 25, 26, 27, 28 and 29 of this Law.

d) Work which does not fully satisfy the conditions for making a contractor selection plan (if any), clearly stating jobs involved in, and value of, this work;

dd) Total of the values of the work components specified at Points a, b, c and d of this Clause. This total must not exceed the approved total investment of the project;

e) Other related contents.

2. Competence of contractor selection plans

a) The investor shall organize the making and approval of the contractor selection plan in case the master plan for contractor selection has been approved;

b) Competent persons shall consider and approve the contractor selection plan for projects that do not apply the master plan for contractor selection or authorize the project owners, agencies and units under their approval management, except for the cases specified at Point c of this Clause;

c) The project owner or the head of the unit assigned to prepare the project shall approve the contractor selection plan in case the project owner of the pre-bidding package has not been determined as prescribed in Article 42 of this Decree, or the package needs to be implemented before the project is approved.

3. The person approving the contractor selection plan specified in Clause 2 of this Article shall appraise the contents as prescribed in Article 39 of this Law before approving it.

Article 41. Approval of a contractor selection plan for a procurement cost estimate

1. A dossier on submission of a contractor selection plan for approval has the following contents:

a) Performed work, including jobs related to bidding packages already executed with corresponding value, and legal grounds for execution;

b) Work to which none of the contractor selection forms can be applied;

c) Work stated in the contractor selection plan, including jobs and corresponding value constituting bidding packages to be executed in any of the contractor selection forms specified in Articles 21, 22, 23, 24, 25, 26, 27, 28 and 29 of this Law.

d) Work which does not fully satisfy the conditions for making a contractor selection plan (if any), clearly stating jobs involved in, and value of, this work;

dd) Total of the values of the work components specified at Points a, b, c and d of this Clause. The total value of these components must not exceed the procurement cost budget;

e) Other related contents.

2. Competent persons shall approve the contractor selection plan or authorize the project owner, agency or unit under their management to approve the contractor selection plan.

3. The person approving the contractor selection plan specified in Clause 2 of this Article shall appraise the contents as prescribed in Article 39 of this Law before approving it.

Article 42. Pre-bidding

1. Pre-bidding for bidding packages to select contractors to implement projects funded by ODA or concessional loans from foreign donors shall comply with treaties and agreements on ODA and concessional loans that have been signed.

Activities performed before signing treaties and agreements on ODA and concessional loans of foreign donors include: making, submission, appraisal and approval of contractor selection plans, dossiers of invitation for expression of interest, dossiers of invitation to prequalification, bidding dossiers and dossiers of requirements, and identification of shortlist.

2. The activities specified in Clause 1 of this Article shall be carried out in accordance with Point a, Clause 1, Article 43 of this Law.

Chapter IV

PROCESS AND PROCEDURES FOR CONTRACTOR AND INVESTOR SELECTION

Section 1. PROCESS AND PROCEDURES FOR CONTRACTOR SELECTION

Article 43. Process and procedures for contractor selection

1. The process and procedures for contractor selection for open bidding or restricted bidding are as follows:

a) Preparation for contractor selection;

b) Organization of contractor selection;

c) Evaluation of bid dossiers;

d) Negotiation of contracts for bidding packages to provide consultancy services.

For bidding packages for goods procurement, construction and installation, provision of non-consultancy services applying international bidding, mixed bidding packages and bidding packages with high technical requirements, if necessary, the bid solicitor may negotiate contracts with the first ranked contractor;

dd) Submission, appraisal, approval and publicization of contractor selection results; explanation of the reason for the contractor's failure to win the bid at the contractor's request (if any);

e) Finalization, signing, and management of contract performance.

2. The process and procedures for contractor selection for contractor appointment are as follows:

a) Preparation for contractor selection;

b) Organization of contractor selection;

c) Evaluation of dossiers of proposals and negotiation on proposals of of one or more contractors (if any);

d) Submission, appraisal, approval and publicization of contractor selection results;

dd) Finalization, signing, and management of contract performance;

For the cases specified at Point m, Clause 1, Article 23 of this Law, the competent person may decide to apply the shortened process including the following steps: preparation and sending of draft contracts to contractors; finalization of contracts; submission, approval and publicization of contractor selection results; signing and management of contracts.

3. The process and procedures for contractor selection for competitive offers are as follows:

a) Preparation for contractor selection;

b) Organization of contractor selection;

c) Evaluation of bid dossiers;

d) Submission, appraisal, approval and publicization of contractor selection results; explanation of the reason for the contractor's failure to win the bid at the contractor's request (if any);

dd) Finalization, signing, and management of contract performance.

4. The process and procedures for contractor selection for direct procurement are as follows:

a) Preparation for contractor selection;

b) Organization of contractor selection;

c) Evaluation of dossiers of proposals and negotiation on proposals of contractors;

d) Submission, appraisal, approval and publicization of contractor selection results;

dd) Finalization, signing, and management of contract performance.

5. The process and procedures for contractor selection for self-execution are as follows:

a) Preparation of self-execution plan, including a draft agreement on assignment of work;

b) Finalization of the self-execution plan;

c) Approval and publicization of contractor selection results;

d) Signing the agreement on assignment of work; management of the implementation of the bidding package.

6. The selection of individual consultants shall be applied when the work of the bidding package requires only one or a few experienced and capable experts to perform without the participation of the organization, without the participation of organizations, and without requiring the conditions for implementation as for contractors that are organizations. The process and procedures for selection of individual consultants are as follows:

a) Preparation for contractor selection;

b) Organization of contractor selection;

c) Assessment of resumes of individual consultancy contractors;

d) Negotiation on contracts;

dd) Submission, approval and publicization of contractor selection results;

e) Signing, and management of contract performance.

7. The process and procedures for selection process for bidding packages with the participation of local communities are as follows:

a) Preparation of plans on selection of local communities or worker teams for execution of bidding packages;

b) Organization of selection;

c) Approval and publicization of selection results;

d) Finalization, signing, and management of contract performance.

8. The Government shall detail this Article.

Article 44. Contents of bidding dossiers for contractor selection

1. A bidding dossier must comprise:

a) Contractor instructions and additional purchase options (if any);

b) Bid data sheet;

c) Criteria for evaluation of the validity of bidding dossiers; contractor's capacity and experience; technical, financial, and commercial aspects; reputation of the contractor through participation in bids, performance of previous similar contracts and the quality of similar used goods.

In cases of using special subcontractors, the bidding dossiers must clearly state the scope of work and requirements for the capacity and experience of the special subcontractors;

d) Forms of bid invitation and bidding participation;

dd) Scope of supply, technical requirements, terms of reference;

e) Conditions and forms of contracts;

g) Dossiers, drawings and other contents (if any).

2. Bidding dossiers are stated to originate from groups of countries and territories. In case the bidding package falls under Point dd, Clause 1, Article 23 and fully satisfies the conditions for application of the form of contractor appointment as prescribed in Clause 3, Article 23 of this Law, but the competent person decides to apply the forms of open bidding, restricted bidding, or competitive offer for contractor selection, the bidding dossiers must specify the origin and trademark of the goods.

3. A bidding dossier must not contain any condition that restricts participation of contractors and creates advantages to one contractor or several contractors, thus leading to unfair competition.

4. In case a bidding dossier contains contents that violate the provisions of Clause 3 of this Article, these contents shall be considered invalid and not be used as a basis for evaluation of the bidding dossier.

Article 45. Time of contractor selection

1. Time for organization of contractor selection is regulated as follows:

a) The time for preparing dossiers of expression of interest and dossiers for participation in prequalification is at least 09 days, for national bidding, or 18 days, for international bidding, counted from the first date of issuance of dossiers of invitation for expression of interest and dossiers for participation in prequalification to the date of bid closing.

b) The time for preparing bid dossiers for open bidding and restricted bidding is at least 18 days for national bidding, 35 days for international bidding, counted from the first date of issuance of the bidding dossier to the date of bid closing. For construction and installation and mixed bidding packages with bidding package price of not exceeding VND 20 billion, or bidding packages for procurement of goods and provision of non-consultancy services with bidding package price of not exceeding VND 10 billion, the time for preparing bid dossiers must be at least 09 days for national bidding, and 18 days for international bidding;

c) The time for preparation of bid dossiers for competitive offers is at least 5 working days, counted from the first date of issuance of bidding dossiers to the date of bid closing;

d) If the bidding package is eligible for application of the form of contractor appointment as prescribed at Points a, b and c, Clause 1, Article 23 of this Law, but the competent person decides to apply the form of open bidding for contractor selection, the time for preparing bid dossiers is 09 days, counted from the first date of issuance of bidding dossiers to the date of bid closing;

dd) The modification of bidding dossiers must be carried out within at least 10 days before the date of bid closing. For construction and installation, mixed bidding packages with a bidding package price of not exceeding VND 20 billion, or bidding packages for procurement of goods or provision of non-consultancy services with a bidding package price of not exceeding VND 10 billion, the modification of bidding dossiers must be carried out within at least 03 working days before the date of bid closing. The modification of dossiers of invitation for expression of interest and dossiers of invitation to prequalification shall be carried out within at least 03 working days before the date of bid closing.

2. Dossiers of invitation for expression of interest, dossiers of invitation to prequalification and bidding dossiers shall be issued concurrently with notices of invitation for expression of interest, notices of invitation to prequalification, notices of invitation to bidding.

3. For jobs other than those specified in Clauses 1 and 2 of this Article, the competent person and project owner shall decide the time for implementation on the basis of ensuring the progress of the project or bidding package.

Section 2. ORDER AND PROCEDURES FOR SELECTION OF INVESTORS

Article 46. Order and procedures for selection of investors

1. The procedures for investor selection include the following steps:

a) Announcement of business investment projects;

b) Preparation for the bidding to select investors, including making, appraisal and approval of bidding dossiers;

c) Organization of the bidding to select investors, including invitation for bids; issuance, modification and clarification of bidding dossiers; preparation, submission, receipt, management, modification, withdrawal and replacement of bid dossiers;

d) Evaluation of bid dossiers, including bid opening; examination and evaluation of the validity of bid dossiers; detailed evaluation of bid dossiers;

dd) Submission, appraisal, approval and publicization of investor selection results; explanation of the reason for the investor's failure to win the bid at the investor's request (if any);

e) Negotiation, finalization and signing of contracts.

2. In case the land law and the law on management of sectors and fields require the organization of bidding to select investors when there are two or more interested investors, in addition to the steps specified in Clause 1 of this Article, the competent agency shall prepare the dossiers of invitation for expression of interest, notices of invitation for expression of interest, organize the evaluation of the dossiers for registration of the project implementation and approve the results of the invitation for expression of interest before carrying out the preparation for bidding to select the investors specified at Point b, Clause 1 of this Article.

3. The Government shall detail this Article.

Article 47. Announcement of business investment projects

1. Competent agencies shall announce business investment projects on the national bidding network as the basis for organizing investor selection.

2. Contents of announcement of business investment projects include:

a) Decision approving the investment policy (if any);

b) Project name; project objectives and scope; investment capital;

c) Location of the project; current land use, land lot areas for project implementation; land-using purposes; approved planning criteria;

d) Time limit and progress of project implementation; preliminary plan on investment phasing or division of sub-projects (if any); project implementation progress in each phase (if any);

dd) Name of the bid solicitor; form and method of investor selection; starting time of investor selection organization;

e) Other relevant contents.

Article 48. Contents of a bidding dossier for investor selection

1. A bidding dossier must comprise:

a) Instructions to investors;

b) Bid data sheet;

c) Contents of examination and evaluation of the validity of the bid dossiers;

d) Investor's capacity and experience evaluation criteria and method; business investment plan; efficiency in land use or efficiency in investment and development of sectors and fields;

dd) Forms of bid invitation and bidding participation;

e) Information and requirements for the implementation of business investment projects;

g) Draft contract, contract form;

h) Other relevant contents.

2. A bidding dossier must not contain any condition that restricts participation of investors and creates advantages to one investor or several investors, thus leading to unfair competition.

Article 49. Time for investor selection organization

1. For national bidding, the time for preparing a bid dossier is at least 45 days from the first date on which the bidding dossier is issued to the bid closing date.

2. For international bidding, the time for preparing a bid dossier is at least 60 days from the first date on which the bidding dossier is issued to the bid closing date.

3. For jobs other than those specified in Clauses 1 and 2 of this Article, the competent person or bid solicitor shall be responsible for deciding the implementation period on the basis of ensuring the implementation progress of the business investment project.

Section 3. ONLINE BIDDING

Article 50. Online selection of contractors or investors

1. Open bidding, restricted bidding, domestic competitive offer must be conducted on the national bidding network according to the following roadmap:

a) From the effective date of this Law to the end of December 31, 2024, online or non-online bidding shall comply with the Government's regulations;

b) From January 1, 2025, online bidding shall be applied to all bidding packages, except for the case of not bidding on the national bidding network as prescribed in Clause 5 of this Article.

2. Contents of contractor and investor selection conducted on the national bidding network include:

a) Posting the information on contractor and investor selection;

b) Making, appraising and approving dossiers of invitation to prequalification, dossiers of invitation for expression of interest, bidding dossiers and dossiers of requirements;

c) Making and submitting dossiers for participation in prequalification, dossiers of expression of interest, dossiers of registration for project implementation, bid dossiers and dossiers of proposals;

d) Opening bids;

dd) Evaluating dossiers for participation in prequalification, dossiers of expression of interest, bid dossiers, dossier of proposals, conducting invitation for contract negotiation, appraisal and approval of contractor selection results;

e) Partnership agreements, electronic bid guarantee and e-contract performance guarantee;

g) Clarifying contents in bidding;

h) Sending and receiving petitions;

i) E-contracts;

k) E-payment.

3. Electronic documents on the national bidding network are valid according to the law on e-transactions, serving as a basis for comparison and authentication of information in service of assessment and appraisal, inspection, examination, audit and disbursement.

4. Expenses for online bidding include: costs of participating in the national bidding network; expenses for posting information about bidding as prescribed at Point c, Clause 1 and Point c, Clause 2, Article 15 of this Law, participating in bids, signing contracts and other expenses for conducting online bidding on the national bidding network.

5. The Government shall regulate the connection and sharing of information in accordance with Clause 6, Article 51 of this Law; online bidding techniques suitable to the features and development of the national bidding network; online bidding process, procedures and costs; online investor selection roadmap; cases ineligible for bidding on the national bidding network.

Article 51. Requirements on the national bidding network

1. Publicity, without any restricted access to information publicly posted on the national bidding network.

2. The time source of the national bidding network is determined in accordance with the law on the national standard time source.

3. The national bidding network has an uninterrupted operation, uniformity, stability, information safety, ability to identify users, data confidentiality and integrity.

4. Recording of information on, and tracking of the history of, transactions on the national bidding network.

5. Assurance that contractors and investors cannot send dossiers of expression of interest, dossiers for participation in prequalification, bid dossiers and dossiers of proposals to bid solicitors after the time of bid closing.

6. Information about contractors and investors is connected and shared from the national information system on business registration, tax administration information system, treasury and budget management information system and other systems. The national bidding network is connected with e-portals, and other information technology systems for the exchange and sharing of data and information in service of online bidding and state management of bidding.

Article 52. Responsibilities of the organization operating the national bidding network

1. To ensure information safety, cybersecurity, and database security of the national bidding network.

2. To ensure the integrity of the dossiers on the national bidding network, prevent unauthorized access, illegal substitution of dossiers.

3. To ensure safety, security and confidentiality for users and manage user profiles; have a mechanism to record information and trace the origin of information over time, act on the national bidding network.

4. To build the national bidding network to ensure compatibility with other systems, with friendly interface, meeting standards in the field of information technology.

5. To manage information safety and cybersecurity risk of the national bidding network.

6. Not to use information about projects, business investment projects, bidding packages, project owners, bid solicitors, contractors, investors and other information on the national bidding network to serve purposes that are not within the functions and duties of the organization operating the network.

7. To ensure that the hardware system meets the requirements of implementing bidding activities.

8. To discharge other responsibilities in accordance with this Law and other relevant laws.

Chapter V

CENTRALIZED PROCUREMENT; PROCUREMENT OF MEDICINES, CHEMICALS, MEDICAL EQUIPMENT AND TESTING SUPPLIES; PROVISION OF PUBLIC PRODUCTS AND SERVICES

Article 53. Centralized procurement

1. Centralized procurement may be applied when fully satisfying the following conditions:

a) Goods and services need to be procured in large quantities or of similar types in one or more than one agency, organization, or unit.

In case of purchasing rare medicines or medicines that need to be purchased in small quantities, the form of centralized procurement may be applied to ensure that there are enough medicines to serve medical examination and treatment needs;

b) Goods or services are on the list of goods and services for which concentrated procurement is applied under Clause 2 of this Article.

2. Competence to promulgate the list of goods and services applicable to centralized procurement is prescribed as follows:

a) The Minister of Health shall promulgate the list of national-level centralized procurement of medicines; the list of national-level centralized procurement of medical equipment and testing supplies in case of necessity;

b) The Minister of Finance shall promulgate the list of goods and services subject to national-level centralized procurement, except for the lists promulgated by the Minister of Health in accordance with Point a of this Clause;

c) Ministers, heads of ministerial-level agencies, government-attached agencies, other central agencies, chairpersons of provincial-level People's Committees, heads of state-owned enterprises and enterprises of which the State holds 100% of charter capital shall issue a list of goods and services applying centralized procurement (including the list of medicines, medical equipment, and testing supplies) under their management, except for goods or services on the lists of national-level centralized procurement promulgated by the Minister of Health and the Minister of Finance in accordance with Points a and b of this Clause.

3. Centralized procurement must be conducted through open bidding. In case goods are on the list of centralized procurement but need to be procured for disease prevention and control as prescribed at Point c, Clause 1, Article 23 of this Law, the form of contractor appointment may be applied. In case goods on the list of concentrated procurement satisfy the conditions for price negotiation as prescribed in Clause 1, Article 28 of this Law, the form of price negotiation may be applied.

4. Centralized procurement is carried out at the national, ministerial, central, local and enterprise levels and shall be conducted by either of the following methods:

a) Centralized procurement units select contractors and directly sign contracts with selected contractors;

b) Centralized procurement units select contractors, sign a written framework agreement with one or more than one selected contractor to serve as a ground for units with procurement demand to sign contracts with selected contractors.

5. For goods and services not on the list of centralized procurement but many agencies, organizations and units wishing to purchase goods and services of the same type, they may be combined into a bidding package for one of the procurement agencies, organizations or units or units with centralized procurement function to perform the procurement.

6. Centralized procurement units shall select contractors based on assigned tasks or contracts signed with units with demand.

7. The Government shall detail this Article and prescribe the summing up of centralized procurement needs of private medical examination and treatment facilities.

Article 54. Framework agreements

1. Framework agreement in centralized procurement means an agreement between the centralized procurement unit with one or more than one selected contractor, for an undivided bidding package or for a part of a divided bidding package.

2. The framework agreement stipulates the contents and conditions to serve as the basis for the procurement under each specific contract.

3. The term of a framework agreement shall be specified in the contractor selection plan and must not exceed 36 months. At the time of signing a framework agreement, bid dossiers of selected contractors remain valid.

4. For partnership contractors, all partnership members shall directly sign and append their seals (if any) to framework agreements.

Article 55. Selection of contractors to provide medicines, medicals, testing supplies and medical equipment

1. Medical examination and treatment facilities may select contractors to supply chemicals, testing supplies and medical equipment in one of the following methods:

a) Selecting a contractor to perform the bidding package to supply chemicals and testing supplies, and the successful contractor shall be responsible for providing medical equipment to use such chemicals and testing supplies at the request of the project owner; the contractor is not allowed to transfer ownership, only transfers the right to use medical equipment to medical examination and treatment facilities;

b) Selecting contractors according to the number of technical services:

The contractor shall provide the project owner with chemicals, testing supplies, medical equipment, spare parts, accessories and related services to operate the medical equipment according to the number of technical services that the project owner and bid solicitor require in the bidding dossiers, dossiers of requirements, and shall not provide workers to operate medical equipment.

The contractor shall only transfer the right to use, not the ownership of the medical equipment to the project owner. Bidding package prices and bid shall be determined on the basis of the expected quantity of technical services. The contract performance duration shall not exceed 5 years;

c) Selecting a contractor to perform the bidding package for the supply of medical equipment, chemicals and testing supplies: The contractor shall transfer the ownership of the medical equipment and chemicals and testing supplies to the project owner from the date the contract between the parties comes into force;

d) Selecting a contractor to provide medical equipment in accordance with the bidding law;

dd) Selecting contractors to supply chemicals and testing supplies to operate existing medical equipment;

e) Selecting contractors to provide technical services in accordance with the Law on Medical Examination and Treatment.

2. For the purchase of medicines that are not on the list of medicines covered by the health insurance fund, or for the purchase of vaccines for immunization in the form of a service, the medical examination and treatment facilities and the health facilities shall decide on the procurement on the basis of ensuring publicity, transparency, economic efficiency and accountability.

3. In case private medical examination and treatment facilities do not choose to apply the provisions of this Law to the purchase of medicines, chemicals, testing supplies and medical equipment, such medical examination and treatment facilities shall only be paid from the health insurance fund according to the price of medicines, chemicals, testing supplies and medical equipment according to the winning unit prices of public medical examination and treatment facilities at provincial and central levels or medical examination and treatment facilities of the same professional and technical level in the same locality; if there is no winning bid of public medical examination and treatment facilities at provincial or central level or medical examination and treatment facilities of the same professional and technical level in the same locality, the Government's regulations shall prevail.

4. The Government shall detail this Article.

Article 56. Preferences in procurement of medicines

1. Preferences in procurement of medicines are as prescribed in Article 10 of this Law, and the following provisions:

a) For medicines manufactured by at least 03 domestic manufacturers that satisfy the technical criteria as prescribed by the Ministry of Health and in terms of quality and price, the project owner shall decide to request the contractor to offer the medicines of domestic origin for this product.

b) For medicines announced by the Ministry of Health, there are at least 03 domestic manufacturers on the medicine production line that meet the principles and standards of EU-GMP or equivalent to EU-GMP and meet the technical criteria according to regulations of the Ministry of Health and on quality, price and supply ability, the bidding dossiers and dossiers of requirements must specify that contractors only bid for medicines of domestic origin.

2. The Ministry of Health shall be responsible for publicizing the list of medicines specified at Point b, Clause 1 of this Article.

Article 57. Selection of contractors providing public products and services

1. Public product, service means a product or service essential for the country's socio-economic life or the population, or for the maintenance of national defense or security, of which the State has to organize the provision in the fields of education and training; vocational education; health; culture, sports and tourism; information and communication; science and technology; natural resources and environment; transport; agriculture and rural development; industry and trade; construction; labor, invalids and social affairs; justice and other fields as prescribed by law.

Public products and services include public-utility products and services and public non-business services.

2. The selection of contractors to provide public products and services shall comply with this Law.

3. In addition to the forms of contractor selection specified in Chapter II of this Law, the selection of contractors to provide public products and services shall be carried out in the form of ordering and assigning tasks according to the Government's regulations.

Chapter VI

METHODS OF EVALUATION OF BID DOSSIERS AND CONSIDERATION AND APPROVAL OF BID WINNERS

Section 1. METHODS OF EVALUATION OF BID DOSSIERS AND CONSIDERATION AND APPROVAL OF BID WINNERS IN CONTRACTOR SELECTION

Article 58. Methods of evaluation of bid dossiers for bidding packages to provide non-consultancy services, procure goods, or for construction and installation, or mixed bidding packages

1. Lowest bid method:

a) This method shall be applied to bidding packages in which technical, financial or commercial proposals are regarded to be on the same plane when they satisfy requirements stated in bidding dossiers;

b) The contractor who has the bid dossier meets the technical requirements, and the lowest bid after error correction or deviation adjustment (if any), minus the value of discounts (if any) shall be ranked first.

2. Evaluation bid method:

a) Evaluation bid means a bid after errors are corrected or deviations are adjusted according to requirements of the bidding dossier, minus the value of discounts (if any), plus elements for conversion on the same plane for the whole use life of the goods, work or non-consultancy service. Evaluation bid is used for ranking bid dossiers for a bidding package for procurement, construction and installation or non-consultancy, and for a mixed bidding package subject to open bidding, restricted bidding or competitive offer.

b) This evaluation bib method shall be applied to bidding packages in which costs can be converted to the same plane in terms of technical, financial or commercial elements for the whole use life of goods, works or non-consultancy services;

c) One or several elements to be converted to the same plane for determination of evaluation bid include costs of operation and maintenance and other costs related to loan interests, implementation schedule and quality of goods, services or construction works under bidding packages, capacity, performance; statistical results, and results of evaluation the performance of previous similar contracts, including the consideration of origin; sustainable bidding and other factors;

d) The contractor with the lowest evaluation bid shall be ranked first.

3. Method of combined techniques and bids:

a) The method of combining technique and price may be applied to information technology, telecommunications and insurance bidding packages; goods, construction and installation bidding packages with specific characteristics and high technical requirements that cannot be applied the evaluation bid method and the bidding packages should be considered on the basis of focusing on technical factors and prices;

b) General points shall be developed on the basis of combination of technical and price points. The contractor with the highest general points shall be ranked first.

4. For capacity and experience evaluation, the “pass” and “fail” criteria shall be used. For technical evaluation, the point-rating method or “pass” and “fail” criteria shall be used. For the method of combined techniques and bids specified in

Clause 3 of this Article, the point-rating method shall be used to formulate the technical evaluation criteria. When applying the point-rating method, the minimum point rate which is up to 70% of total technical points is required.

Article 59. Methods of evaluation of bid dossiers for bidding packages to provide consultancy services

1. Lowest bid method:

a) The lowest bid method shall be applied to simple consultancy bidding packages, and consultancy bidding packages with clear implementation process according to available criteria;

b) The contractor who has the bid dossier meets the technical requirements, and the lowest bid after error correction or deviation adjustment, minus the value of discounts (if any) shall be ranked first.

2. Fixed bid method:

a) The fixed bid method shall be applied to simple consultancy bidding packages with the scope of work determined accurately, execution costs of bidding packages determined in a reasonable, specific and fixed manner in bidding dossiers;

b) The contractor who has the bid dossier meets the technical requirements, and the bid after error correction or deviation adjustment, minus the value of discounts (if any) not exceeding the bidding package price with the highest technical points, shall be ranked first.

3. Method of combined techniques and bids:

a) The method of combined techniques and bids shall be applied to consultancy bidding packages attaching importance to both quality and execution costs of bidding packages;

b) General points shall be developed on the basis of combination of technical and price points. The development of general points must adhere to the principle that technical points account for between 70-80% and bid points account for 20-30% of the total points of the general point scale (100%). The contractor with the highest general points shall be ranked first.

4. Technique-based method:

a) The technique-based method shall be applied to consultancy bidding packages with high and special technical requirements;

b) The contractor with the bid dossier satisfying the technical requirements and the highest technical point shall be ranked first and invited to open dossiers of financial proposals to serve as a ground for contract negotiation.

Article 60. Consideration and approval of bid winners for provision of consultancy services

1. An institutional consultancy contractor may be considered and proposed to be the bid winner when fully satisfying the following conditions:

a) Having a valid bid dossier or dossier of proposals;

b) Having technical proposals satisfying requirements of the bidding dossier or dossier of requirements;

c) With regard to the lowest bid method: Having the lowest bid after error correction or deviation adjustment, minus the value of discounts (if any). With regard to bidding packages applied the type of lump-sum contract: Having the lowest bid after minus the value of discounts (if any). With regard to the fixed bid method and technique-based method: Having the highest technical points. With regard to the method of combined techniques and bids: Having the highest general points;

d) Having the proposed winning bid not exceeding the approved bidding package price.

2. An individual consultancy contractor may be considered and proposed to be the bid winner when fully satisfying the following conditions:

a) Having the best resume and technical proposals (if any) and satisfying requirements of the terms of reference;

b) Having the proposed winning bid not exceeding the approved bidding package price.

3. For contractors that are not selected, notices of contractor selection results must state the reason for not winning.

Article 61. Consideration and approval of bid winners for bidding packages to provide non-consultancy services, procure goods or for construction and installation, or mixed bidding packages

1. A contractor to provide non-consultancy services, procure goods or for construction and installation, or execute a mixed bidding package may be considered or proposed to be the bid winner when fully satisfying the following conditions:

a) Having a valid bid dossier or dossier of proposals;

b) Having capacity and experience that satisfy requirements stating in bidding dossier or dossier of requirements;

c) Having technical proposals that satisfy requirements stating in bidding dossier or dossier of requirements;

d) Having the value of deficient deviation not exceeding 10% of his/her/its bid;

dd) Having the lowest bid after error correction or deviation adjustment, minus the value of discounts (if any), for the lowest bid method; having the lowest evaluation bid, for the evaluation bid method; or having the highest general point, for the method of combination of techniques and bids;

e) Having the proposed winning bid not exceeding the approved bidding package price.

2. For contractors that are not selected, notices of contractor selection results must state the reason for not winning.

Section 2. METHODS OF EVALUATION OF BID DOSSIERS; CONSIDERATION AND APPROVAL OF BID WINNERS IN INVESTOR SELECTION

Article 62. Methods of evaluation of bid dossiers

1. The method of evaluation of social benefits and state benefits shall apply to evaluate the investors' capacity and experience, efficiency of business investment plans proposed by investors, including efficiency of land use, efficiency of investment in development of sectors, fields and localities.

2. Evaluation of bid dossiers of investors shall be carried out based on the following criteria:

a) Criteria for evaluation of the investors' financial capacity, ability to arrange capital, experience from the implementation of similar business investment projects;

b) Criteria for evaluation of business investment plans of investors, including technical, social and environmental criteria;

c) Criteria for evaluation of efficiency of land use, efficiency of investment in development of sectors, fields and localities.

3. For business investment projects with particular requirements on conditions for business investment, management and development of sectors and fields as specified by law on investment, management of sectors and fields, the bidding dossiers shall state the fixed criteria among the criteria specified in Clause 2 of this Article.

4. Criteria for evaluation of bid dossiers shall be developed by 100- or 1,000-point point scale. The general point shall be determined on the basis of a combination

of point of capacity and experience, point of business investment plan, and point of efficiency of land use, efficiency of investment in development of sectors, fields and localities. Investors who achieve the required minimum score of each criterion specified in Clauses 2 and 3 of this Article and have the highest general point shall be ranked first.

5. The Government shall detail this Article.

Article 63. Consideration and approval of bid winners

1. An investor shall be considered and proposed to be the bid winner when fully satisfying the following conditions:

a) Having a valid bid dossier;

b) Satisfying the requirements on capacity and experiences;

c) Satisfying the requirements on business investment plan;

d) Satisfying the requirements on efficiency of land use, efficiency of investment in development of sectors, fields and localities;

dd) Having the highest general point of capacity and experience, business investment plan, and efficiency of land use, efficiency of investment in development of sectors, fields and localities.

2. For investors that are not selected, notices of investor selection results must state the reason for not winning.

Chapter VII
CONTRACTS

Section 1. CONTRACTS WITH CONTRACTORS

Article 64. Types of contract

1. Lump-sum contract:

a) A lump-sum contract shall be applied to a bidding package of which the scope of jobs, technical requirements, and time for implementation are clearly determined at the time of contractor selection, and there is a low probability of change in volume of work, technical requirements, unforeseen conditions; or a bidding package of which the volume and unit price have not been clearly determined but the contracting parties have determined the ability to manage risks, manage arising changes or determined the characteristics of input products, including EPC contracts and turnkey contracts;

b) In case of a lump-sum contract, the bidding package price serving as a ground for consideration and approval of the bid winner must include expenses of provisions for risks of volume of work and provisions for inflation which may occur in the course of contract performance that are corresponding to the risk management responsibility assigned to the contractor in the bidding package. A bid must include all expenses for risks of volume of work and provisions for inflation which may occur in the course of contract performance that are corresponding to the contractor's responsibility in implementation of the bidding package;

c) Contractual price shall be unchanged throughout the course of contract performance, for scope of jobs, technical requirements and terms specified in the contract, except for *force majeure* circumstances and changes in scope of jobs leading to change of contractual price;

d) The payment may be made according to the percentage (%) of the contractual price or price of works, work items, volume of work corresponding to the payment period agreed upon by the parties in the contract. The certification of the completed volume in detail is not required upon payment.

2. Contract with fixed unit price:

a) A contract with fixed unit price shall be applied to a bidding package of which the nature of the work has been clearly determined but the actual quantity and volume of work to be completed have not yet been determined at the time of contractor selection. The initial contractual price shall be based on the quantity, volume of work, the fixed unit price under the contract and the contingency expenses for the quantity, volume of work that may arise that are determined in accordance with the law;

b) A contract with fixed unit price have a unit price unchanged throughout the course of contract performance for the whole contracted work. The contractor is entitled to receive payment according to the quantity or volume of work tested and accepted, and the fixed unit price stated in the contract.

3. Contract with adjustable unit price:

a) A contract with adjustable unit price shall be applied to a bidding package with the long performance time and risk of price fluctuations for input costs for performance of the contract, which may negatively impact the performance of the bidding package if a fixed unit price is applied. The contract with adjustable unit price has the unit price, contractual price which can be adjusted on the basis of agreements in the contract for the whole contracted work. The initial contractual price shall be based on the necessary quantity, volume of work with the base unit price under the contract and the contingency expenses for the quantity, volume of work that may arise, and expenses for provisions for inflation. The content of the contract must specify the method of calculating the inflation and expenses for provisions for inflation in accordance with law;

b) The contractor is entitled to receive payment according to the quantity or volume of work tested and accepted, and the unit price stated in the contract or the adjusted unit price (if any).

4. Time-based contract:

A time-based contract shall be applied in the state of emergency; repair and maintenance of works, machinery and equipment; consultancy services in cases it is difficult to determine the scope and duration of the services. The contractual price is calculated on the basis of the unit price for the unit of time, the agreed hourly, daily, weekly or monthly wage level stated in the contract and reasonably incurred expenses that can be reimbursed.

5. Charge-plus cost-based contract:

A charge-plus cost-based contract shall be applied to works or services in which there is not enough the grounds for determination of the scope of jobs, necessary needs for input costs and elements to perform the expected jobs of the contract at the time of contractor selection. At the time of signing the contract, the parties shall agree on management costs, overhead costs, profits, and calculation method by direct costs; method of direct cost determination as a basis for calculating direct costs and other contents for contract performance.

6. Output-based contract:

An output-based contract shall be applied to works and services for which the payment shall be based on the results of contract performance with the quality, quantity and other elements tested and accepted. The contract must clearly state specific requirements on output quantity and quality, measures to examine, assess, determine the level of satisfaction of output quality requirements, payment deduction level, regulations on price adjustment (if any) and other contents for performance of the contract.

7. Percentage contract:

A percentage contract may only be applied to a bidding package of work insurance of which the contract value is determined exactly on the basis of the actual value of the work tested and accepted.

8. Mixed contract:

Mixed contract that means a contract combined contracts specified in Clauses 1, 2, 3, 4, 5, 6 and 7 of this Article. A mixed contract must clearly specify the scope of jobs applicable to each respective type of contract and relevant additional and adjustment contents in case of applying multiple types of contract to a content of work or service. The payment for mixed contracts must comply with the regulations on payment applicable to each type of contract for the scope of jobs performed.

Article 65. Dossiers of contracts with contractors

1. A contract dossier comprises the following documents:

a) Written contract;

b) Contract annexes, including the detailed list of jobs, price table and performance schedule (if any);

c) Decision approving the contractor selection result.

2. In addition to the documents specified in Clause 1 of this Article, depending on the size and characteristics of the bidding package, the contract dossier may include one or several of the following documents:

a) Minutes on contract finalization;

b) Minutes on contract negotiation (if any);

c) Written agreement between parties on conditions of the contract, including general conditions and specific conditions;

d) Bid dossier or dossier of proposals and documents clarifying such dossier of the selected contractor;

dd) Bidding dossier or dossier of requirements and documents amending or supplementing such dossier;

e) Other relevant documents.

Article 66. Conditions for contract signing

1. At the time of signing, bid dossiers or dossiers of proposals of selected contractors remain valid. For cases of centralized procurement using a framework agreement, the framework agreement must be still valid at the time of signing.

2. At the time of signing, selected contractors must satisfy requirements on technical and financial capacity for execution of bidding packages as specified in bidding dossiers or dossiers of requirements.

3. Project owners shall ensure conditions on advanced capital, capital for payment, site ground for execution and other necessary conditions for execution of bidding packages according to schedule.

Article 67. Signing contracts with selected contractors

Signing contracts between project owners and selected contractors shall be as follows:

1. A bidding package shall be executed under one contract; one or several types of contract specified in Article 64 of this Law may be applied in a contract; for bidding packages of centralized procurement or multi-component bidding packages, a bidding package may be executed under several contracts corresponding to one or several components. In case several types of contract are applied, the type of contract corresponding to each specific job must be clearly stated;

2. A contract signed between the parties must conform to contents of the bidding dossier or dossier of requirements, bid dossier or dossier of proposals, results of contract negotiation (if any), decision approving the contractor selection result, clearly stating the scope of jobs of special subcontractors (if any) and the maximum value of jobs of subcontractors. The maximum value of jobs of subcontractors shall not include the volume of work of special subcontractors;

3. For partnership contractors, all partnership members shall directly sign and append their seals (if any) to written contracts. For cases of centralized procurement using a framework agreement, all partnership members shall directly sign and append their seals (if any) to written contracts or partnership members shall sign and append their seals (if any) to written contracts with units with procurement demands under the assignment stated in the partnership agreements;

4. The Government shall detail this Article.

Article 68. Contract performance security

1. A contractor must carry out one of the following measures to guarantee the contractor's liability for the contract performance:

a) Deposit;

b) Submission of a guarantee letter issued by a domestic credit institution or foreign bank branch established in accordance with Vietnamese law;

c) Submission of a certificate of guarantee insurance of a domestic non-life insurance enterprise or a branch of a foreign non-life insurance enterprise established in accordance with Vietnamese law.

2. Contract performance security applies to selected contractors, except the following cases:

a) Contractors providing consultancy services;

b) Contractors selected in the form of self-execution, or communities' participation in execution;

c) Contractors performing bidding packages with prices within the limit applicable to contractor appointment specified at Point m Clause 1 Article 23 of this Law.

3. Selected contractors shall take measures to ensure contract performance security before or on the effective date of the contract.

4. Based on the size and characteristics of a bidding package, the value of contract performance security stated in the bidding dossier or dossier of requirements must be equal to between 2% and 10% of the contractual price.

5. The validity duration of contract performance security is counted from the date on which the contract takes effect to the date on which the parties fulfill the contractual obligations or when they shift to perform the warranty obligation in case warranty is provided for in the contract. In case of necessity to prolong the contract performance duration, contractors shall be required to prolong the validity duration of the contract performance security correspondingly before prolonging the contract performance duration.

6. Contractors are not entitled to refund of contract performance security in the following cases:

a) They refuse to perform contracts which have taken effect;

b) They breach agreements in contracts;

c) They perform contracts behind schedule due to their own faults but refuse to prolong the validity duration of the contract performance security.

Article 69. Principles of contract performance

1. The contracting parties are responsible for performing the signed contract.

2. Ensure truthfulness, cooperation and compliance with the law.

3. Not infringe upon interests of the State, the community and legitimate interests of other organizations or individuals.

Article 70. Modification of contracts

1. A contract may be modified in the following cases:

a) Cases agreed upon by the parties in the signed contract in conformity with the law;

b) Cases in which there is a fundamental change in the contract performance circumstances specified by the civil law;

c) Observance of the request of a competent state agency, affecting the performance of the contract without the project owner's fault.

2. Contract modifications may include: volume, schedule, price, application of additional purchase options and other contents agreed upon by the parties in the signed contract, except for the case specified in Clause 5 of this Article. The modifications of schedule, volume, price may only apply during the implementation period of the bidding package stated in the contract, except for the cases of applying the additional purchase options.

3. In the course of contract performance, the parties may adjust times for completion of specific contents specified in the contract in the following cases:

a) In force majeure circumstances or in cases where disadvantageous conditions arise, which obstruct the contractor's contract performance and such circumstances or conditions are not related to any violation or mistake of contracting parties;

b) The project, scope of jobs, scope of provision, designs, key construction solutions, provision measures are changed or modified due to objective requirements, which affect the contract performance schedule;

c) One or several parties propose an initiative or improvement of contract performance that needs the change of performance schedule for the purpose of more interests for the project owner;

d) The site ground is handed over at variance with agreements in the contract, or the contract is suspended due to the project owner's fault, affecting the contract performance schedule, but not due to the contractor's fault;

dd) Suspension of work performance at the request of competent state agencies, but not due to the project owner or contractor's fault.

4. The modification of contract that changes the contract performance duration or exceeds the approved bidding-package price (including contingencies) must be obtained permission from a competent person. The adjusted contractual price must not exceed the total investment, procurement estimate. For a project or procurement estimate consisting of many bidding packages, the adjusted total contractual price must not exceed the total investment, procurement estimate.

5. The parties are not required to sign a document modifying the contract in case of changes in the contractual price, volume and other contents specified in the contract if the following conditions are fully satisfied:

a) Such changes do not exceed the bidding-package price stated in the contractor selection plan; or do not exceed the bidding-package estimate in case the bidding-package estimate is approved after the contractor selection plan is issued;

b) Do not exceed the implementation duration of the bidding package specified in the contract;

c) Methods, formulas, items and necessary contents for the modification are specified in the contract.

6. The Government shall detail this Article.

Section 2. BUSINESS INVESTMENT PROJECT CONTRACTS WITH INVESTORS

Article 71. Signing and principles of performance of business investment project contracts

1. Signing of business investment project contracts must fully satisfy the following conditions:

a) At the time of signing, bid dossiers of selected investors remain valid;

b) At the time of signing, selected investors must satisfy requirements on technical and financial capacity for execution of business investment projects as specified in bidding dossiers.

2. The contract signed between the parties must be consistent with the contents of bidding dossier, bid dossier, decision approving the investor selection result and record on contract negotiation and completion.

3. The competent agency or the bid solicitor (in case of authorization) shall conclude a contract with the selected investor. For an investor being a partnership, all partnership members must sign and affix its/his/her seal (if any) on the written contract.

4. The performance of business investment project contracts must comply with principles defined in Article 69 of this Law.

Article 72. Dossiers of business investment project contract

A dossier of business investment project contract comprises the following documents:

1. Written contract;

2. Annex of the contract (if any);

3. A record on contract negotiation and completion;

4. Decision approving the investor selection result;

5. Bid dossier and other documents clarifying the selected investor' bid dossier;

6. Bidding dossier and documents amending or supplementing such dossier;

7. Other relevant documents.

Article 73. Contents of business investment project contracts

1. A business investment project contract shall contain the following principle contents:

a) Information about the contracting parties, the effective date of the contract, term of the contract;

b) Information about the business investment project, including: project objectives, location and implementation schedule; scale and the total investment; conditions on use of land and other natural resources (if any); plan, requirements on compensation, support, resettlement and construction of auxiliary works (if any); assurance of safety and environmental protection; *force majeure* events and plans on response to such events;

c) Responsibility to carry out procedures for compensation, support, resettlement and construction of auxiliary works (if any); land allocation or lease (if any);

d) Obligations of the investor in implementation of commitments proposed in the bid dossier; establishment of an enterprise to manage the business investment project (if any);

dd) Contract performance security; principles and conditions for modifying or terminating the contract; transferring rights and obligations of the contracting parties;

e) Laws regulating the contract and dispute settlement mechanism.

2. The Government shall detail this Article.

Article 74. Terms of business investment project contracts

1. The term of a business investment project contract means the contract performance period determined in the contract signed between the contracting parties.

2. The term of a business investment project contract shall be counted from the time the business investment project contract takes effect to the time the investor completes the obligation to implement commitments proposed in the bid dossier and other obligations as agreed upon by the parties in the business investment project contract.

3. Upon expiration of such term, the investor shall perform the business investment project in accordance with the investment law and relevant laws.

Article 75. Business investment project contract performance security

1. Investors shall take one of the following measures to secure the business investment project contract performance responsibility before or on the effective date of the contract:

a) Submission of a guarantee letter issued by a domestic credit institution or foreign bank branch established in accordance with Vietnamese law;

b) Submission of a certificate of guarantee insurance of a domestic non-life insurance enterprise or a branch of a foreign non-life insurance enterprise established in accordance with Vietnamese law.

2. Based on the size and characteristics of a business investment project, the value of contract performance security stated in the bidding dossier must be equal to between 1% and 3% of total investment of the project.

3. The validity duration of contract performance security is counted from the date when the contract is officially signed until the contract termination date. In case of prolongation of the contract performance duration, investors shall prolong the validity duration of the contract performance security correspondingly.

4. Investors are not entitled to refund of contract performance security in the following cases:

a) They refuse to perform contracts which have taken effect;

b) They breach agreements in contracts;

c) They perform contracts behind schedule due to their own faults but refuse to prolong the validity duration of the contract performance security.

Article 76. Modification of business investment project contracts

1. A business investment project contract may be modified in the following cases:

a) Modification of the business investment project under the law on investment, leading to changes in contract contents for a project subject to approval of investment policy.

In such case, the modification of the contract may only be carried out after the competent agency approves the adjustment of investment policy. The investor must satisfy requirements on technical and financial capacity for execution of the business investment project after the modification;

b) Transfer of the business investment project in accordance with the law on investment and other relevant laws;

c) Cases agreed upon by the parties in the contract in conformity with the law.

2. For cases of transfer of business investment project specified at Point b Clause 1 of this Article, all following conditions must be satisfied:

a) The transfer must be approved by a competent person;

b) The transferee must satisfy requirements on technical and financial capacity for execution of the business investment project;

c) The transferee commits to take over all the rights and obligations of the transferor specified in the business investment project contract.

Chapter VIII

RESPONSIBILITIES OF PARTIES IN BIDDING ACTIVITIES

Article 77. Responsibilities of a competent person

1. To approve the master plan on contractor selection specified in Article 36 of this Law.

2. To approve the contractor selection plan specified in Article 40 and Article 41 of this Law.

3. To organize the appraisal of the contents specified in Clauses 1 and 2 of this Article.

4. To cease bidding or refuse to recognize the contractor or investor selection result, to handle violations of bidding regulations in accordance with this Law and other relevant laws.

5. To cancel bidding for cases specified at Points b, c, d, dd Clause 1 and Points b, c, d, dd Clause 2 Article 17 of this Law.

6. To settle appeals in the course of contractor or investor selection in accordance with this Law.

7. To organize the inspection, supervision of bidding and contract performance.

8. With regard to contractor selection, in addition to the responsibilities specified in Clauses 1, 2, 3, 4, 5, 6 and 7 of this Article, a competent person has the following responsibilities:

a) To adjust tasks and powers of the project owner that fails to satisfy the conditions prescribed by the bidding law and requirements of the project or bidding package;

b) To request the project owner or bid solicitor to provide dossiers and documents to serve the inspection, supervision, settlement of appeals, handling of violations of bidding law, and exercise of the responsibilities specified in Clauses 4 and 5 of this Article;

c) To give opinions on the response to arising eventualities in complicated cases at the request of the project owner as prescribed at Point a Clause 3 Article 88 of this Law.

9. With regard to investor selection, in addition to the responsibilities specified in Clauses 4, 5, 6 and 7 of this Article, a competent person has the following responsibilities:

a) To be representative of a competent agency to decide on organization of bidding for investor selection;

b) To decide to assign the unit with staff meeting the requirements to select an investor to act as the bid solicitor; in case of unqualified staff, to select a consultancy contractor to perform some tasks of the bid solicitor;

c) To approve dossier of invitation for expression of interest; approve bidding dossier or give the authorization to approve the bidding dossier;

d) To approve results on invitation for expression of interest; investor selection results;

dd) To decide on the response to eventualities arising in bidding;

e) To sign the contract on the basis of approval of the competent agency; organize contract management with the selected investor;

g) To request the bid solicitor to provide dossiers and documents to serve the inspection, supervision, settlement of appeals, handling of violations of bidding law, and exercise of the responsibilities specified in Clauses 4 and 5 of this Article.

10. To explain about the implementation of responsibilities defined in this Article at the request of superior agencies, inspection and examination agencies and state management agencies in charge of bidding.

11. To discharge other responsibilities prescribed by this Law and other relevant laws.

Article 78. Responsibilities of a project owner

1. To approve the following contents:

a) Contractor selection plan, in case the bidding package is executed before the issuance of the decision on approval of the project, pre-bid bidding package;

contractor selection plan, for the project of which the master plan on contractor selection has been approved;

b) Dossier of invitation for expression of interest, dossier of invitation to prequalification and short list;

c) Bidding dossier or dossier of requirements;

d) Contractor selection result.

2. To organize the appraisal of the contents specified in Clause 1 of this Article.

3. To sign or authorize others to sign and manage the contract with contractors; sign and manage the framework agreement for cases of centralized procurement using a framework agreement; make payment for contractors in accordance with the signed contract.

4. To decide to establish a bid solicitor with staff meeting the requirements for contractor selection work; in case of unqualified staff, to select a consultancy contractor to act as the bid solicitor or perform some tasks of the bid solicitor. To decide to form an expert team meeting regulations defined in Article 19 of this Law in cases of failure to lease a consultancy unit to act as the bid solicitor.

5. To decide on the response to eventualities arising in bidding.

6. To settle appeals in contractor selection.

7. To keep relevant information and documents confidential during the course of contractor selection.

8. To preserve relevant information during the course of contractor selection in accordance with the law on archives and this Law.

9. To make annual reports on bidding.

10. To cancel bidding for cases specified at Point a Clause 1 Article 17 of this Law.

11. To provide relevant information and documents, and explain about the implementation of responsibilities defined in this Article at the request of competent persons, inspection and examination agencies and state management agencies in charge of bidding.

12. To take responsibility before law and competent persons for the contractor selection process.

13. To discharge the responsibilities prescribed in Article 79 of this Law, for project owners that are concurrently bid solicitors.

14. To equip information technology infrastructure to meet requirements for online bidding.

15. To take responsibility before law for the accuracy and truthfulness of the information that the project owner has registered and posted on the national bidding network upon use of its digital certificate.

16. To discharge other responsibilities prescribed by this Law and other relevant laws.

Article 79. Responsibilities of a bid solicitor

1. In case of selecting contractors:

a) To prepare for the contractor selection; to organize the contractor selection; organize the evaluation of dossiers of expression of interest, dossiers for participation in prequalification, bid dossiers and dossiers of proposals;

b) To decide to form an expert team in cases the bid solicitor is a consultancy unit selected by the project owner;

c) To request contractors to clarify their dossiers of expression of interests, dossiers for participation in prequalification, bid dossiers and dossiers of proposals in the dossier evaluation process;

d) To submit dossier of invitation to prequalification, dossier of invitation for expression of interest, dossier of requirements, bidding dossier, short list selection result, the contractor selection result for approval;

dd) To negotiate (if any) and finalize contracts with contractors, manage the contract performance (if any);

e) To negotiate (if any) and finalize framework agreements with contractors, manage the performance of framework agreements (if any) for cases of centralized procurement using framework agreements;

g) To keep relevant information and documents confidential during the course of contractor selection;

h) To provide information on the national bidding network; provide relevant information and documents, and explain about the implementation of responsibilities defined in this Clause at the request of competent persons, inspection and examination agencies and state management agencies in charge of bidding;

i) To take responsibility before law and the project owner for the assigned tasks as prescribed in this Clause.

2. With regard to investor selection, in addition to the responsibilities specified at Point h Clause 1 of this Article, a bid solicitor has the following responsibilities:

a) To prepare for the investor selection; to organize the investor selection; organize the evaluation of bid dossiers in accordance with this Law;

b) To decide to form an expert team;

c) To request investors to clarify their bid dossiers in the dossier evaluation process;

d) To submit bidding dossier, investor selection result for approval; approve the bidding dossier in cases of authorization;

dd) To negotiate contracts with investors; sign and manage contracts with investors in cases of authorization;

e) To cancel bidding in accordance with Point a Clause 2 Article 17 of this Law;

g) To keep relevant information and documents confidential during the course of investor selection;

h) To preserve relevant information during the course of investor selection in accordance with the law on archives and this Law;

i) To settle appeals in investor selection;

k) To make annual reports on bidding;

l) To take responsibility before law and competent persons for the assigned tasks as prescribed in this Clause.

3. To equip information technology infrastructure to meet requirements for online bidding.

4. To discharge other responsibilities prescribed by this Law and other relevant laws.

Article 80. Responsibilities of an expert team

1. To compile dossier of invitation for expression of interest, dossier of invitation to prequalification, bidding dossier, dossier of requirements.

2. To evaluate dossiers of expression of interest, dossiers for participation in prequalification, dossiers of registration for implementation of business investment project, bid dossiers and dossier of proposals; propose the bid solicitor a plan for response to arising eventualities in bidding (if any).

3. To keep relevant information and documents confidential during the course of investor or contractor selection.

4. To provide relevant information and documents, and explain about the implementation of responsibilities defined in this Article at the request of competent

persons, project owner, bid solicitor, inspection and examination agencies and state management agencies in charge of bidding.

5. To discharge other responsibilities prescribed by this Law and other relevant laws.

Article 81. Responsibilities of an appraisal team

1. To operate independently and objectively when conducting appraisal.

2. To request the project owner and bid solicitor to fully provide relevant documents.

3. To keep relevant information and documents confidential during the appraisal process.

4. To provide relevant information and documents, and explain about the implementation of responsibilities defined in this Article at the request of competent persons, project owner, inspection and examination agencies and state management agencies in charge of bidding.

5. To take responsibility before law, competent persons and project owner for appraisal results and the assigned tasks as prescribed in this Article.

6. To discharge other responsibilities prescribed by this Law and other relevant laws.

Article 82. Responsibilities of a contractor or an investor

1. To request the bid solicitor to clarify the dossier of invitation for expression of interest, dossier of invitation to prequalification, bidding dossier, dossier of requirements.

2. To provide relevant information and documents, and explain about the implementation of responsibilities defined in this Article at the request of competent persons, project owner, bid solicitor, inspection and examination agencies and state management agencies in charge of bidding.

3. In addition to the responsibilities specified in Clauses 1 and 2 of this Article, a contractor or an investor that participates in the national bidding network has the following responsibilities:

a) To equip information technology infrastructure upon participation in online bidding;

b) To take responsibility before law for the accuracy and truthfulness of the information that he/she/it has registered and posted on the national bidding network.

4. To comply with the signed contract.

5. To discharge other responsibilities prescribed by this Law and other relevant laws.

Chapter IX
STATE MANAGEMENT OF BIDDING ACTIVITIES

Section 1. STATE MANAGEMENT OF BIDDING

Article 83. Contents of state management of bidding

1. Promulgating and organizing the implementation of legal documents on bidding.

2. Reviewing, assessing and reporting on the implementation of bidding activities.

3. Managing bidding information systems and databases nationwide.

4. Supervising, inspecting, examining, settling complaints, denunciations and appeals in bidding and handling violations of the bidding law according to the competence and responsibilities specified in this Law and other relevant laws.

5. Providing training and retraining of professional knowledge and expertise on bidding.

6. Entering into international cooperation on bidding.

Article 84. Responsibilities of state management of bidding

1. The Government shall perform the uniform state management of bidding nationwide.

2. The Ministry of Planning and Investment is the focal point to assists the Government to implement the uniform state management of bidding activities and has the following powers and responsibilities:

a) Formulate, promulgate legal documents on bidding or submit them to the competent agency for promulgation within the competence;

b) Build and manage the national bidding network and journalistic products on bidding to serve the online bidding, publicize information on contractor and investor selection in accordance with this Law;

c) Build and manage the national database on investors and contractors, including contract performance results and quality of used goods in accordance with the Government's regulations;

d) Provide regulations on training, retraining, updating of professional knowledge and expertise on bidding for persons engaged in bidding work; regulations on examination, grant and revocation of professional certificates in bidding;

dd) Perform the inspection and examination of bidding;

e) Exercise other powers and responsibilities on state management of bidding assigned by the Government and the Prime Minister in accordance with this Law and other relevant laws.

Article 85. Responsibilities of ministries, ministerial-level agencies and People's Committees at all levels

1. Perform the state management of bidding activities under their management.

2. Organize the retraining in professional knowledge and expertise on bidding for cadres, civil servants and public employees engaged in bidding work.

3. Examine, inspect, settle appeals, complaints, denunciations, and handle violations of the law on bidding.

4. Review, assess and report on the implementation of bidding activities.

5. Exercise other powers and responsibilities prescribed by this Law and other relevant laws.

Article 86. Inspection, examination and supervision of bidding

1. Inspection of bidding activities:

a) Inspection of bidding activities must be carried out for organizations and individuals engaged in bidding activities as prescribed in this Law;

b) The organization and operation of bidding inspectorates comply with the inspection law.

2. Examination of bidding activities:

a) Examination of bidding activities must be carried out regularly according to plans or irregularly under decisions of heads of competent examination agencies;

b) Examination of bidding covers examination of one of the following activities: promulgation of written guidance and direction on bidding; submission, appraisal and approval contractor selection plans; preparation of contractor or investor selection; organization of contractor or investor selection; management and performance of contracts; and other activities related to bidding;

c) Examination of bidding activities shall be carried out by direct examination method or through written reports;

d) Examination order and procedures: Preparation for examination; organization of examination; examination conclusions; monitoring of the execution of examination results.

3. Supervision of bidding activities:

a) Competent persons and state management agencies in charge of bidding shall supervise bidding activities of project owners and bid solicitors in order to ensure that the process of contractor or investor selection complies with this Law and relevant laws;

b) Bidding activities are supervised by the community, Committees of the Vietnam Fatherland Front at all levels shall assume the prime responsibility for organizing the community's supervision of bidding activities.

c) State management agencies in charge of bidding of ministries, sectors, localities shall supervise bidding activities regularly for bidding packages under projects, business investment projects, procurement estimates in the localities and fields under their management;

d) Competent persons shall implement the supervision of bidding activities for projects, business investment projects, procurement estimates under their management;

dd) Supervision of bidding covers supervision of one of the following contents: dossiers of invitation to prequalification, bidding dossiers, dossiers of requirements; evaluation of bid dossiers, dossiers of proposals; process of organizing the contractor or investor selection;

e) Order and procedures for supervision of bidding activities of competent persons: preparation for supervision; implementation of supervision; reporting on supervision results.

4. The Government shall detail this Article.

Article 87. Handling of violations

1. Organizations and individuals that commit violations of the bidding law shall, depending on the nature and severity of their violations, be disciplined, administratively sanctioned or examined for penal liability; if their violations cause damage, they shall pay compensation in accordance with law.

2. Apart from being handled in accordance with Clause 1 of this Article, depending on the nature and severity of their violations, organizations and individuals committing the prohibited acts specified in this Law may be banned from participating in bidding activities for a definite time of between 6 months and 5 years.

3. The competence to ban the participation in bidding activities is prescribed as follows:

a) Competent persons may ban the participation in bidding activities for projects, business investment projects, procurement estimates under their management;

b) Ministers, heads of ministerial-level agencies, government-attached agencies and other central agencies, chairpersons of provincial-level People's Committees may ban the participation in bidding activities under the management of their ministries, sectors or localities;

c) The Minister of Planning and Investment may ban the participation in bidding activities under its management and nationwide.

4. Decisions to ban the participation in bidding activities must be sent to the organizations and individuals concerned, related agencies and organizations, and the Ministry of Planning and Investment; and must be posted on the national bidding network.

5. The Government shall detail Clauses 2, 3 and 4 of this Article.

Section 2. RESPONSE TO ARISING EVENTUALITIES AND SETTLEMENT OF APPEALS IN BIDDING

Article 88. Response to arising eventualities in bidding

1. For arising eventualities which have not yet been specifically and clearly provided in contractor selection plans; dossiers of invitation for expression of interest, dossiers of invitation to prequalification, bidding dossiers, dossiers of requirements and other contents in bidding activities, competent persons, project owners shall decide on, and take responsibility before the law for, settlement of the eventualities while adhering to the principles of competitiveness, fairness, transparency, economic efficiency and explanation responsibility.

2. The response to arising eventualities shall be based on contractor selection plans; dossiers of invitation for expression of interest, dossiers of invitation to prequalification, bidding dossiers, dossiers of requirements; dossiers of expression

of interest, dossiers for participation in prequalification, dossiers of registration for implementation of business investment project, bid dossiers, dossiers of proposals; contractor or investor selection results; contracts signed with selected contractors or investors; and practical performance or implementation of bidding packages, projects or business investment projects.

3. Competence to respond to arising eventualities in bidding shall be as follows:

a) In case of contractor selection, the project owner shall decide on the response to arising eventualities. In complicated cases, the project owner shall decide on the response to arising eventualities after obtaining opinions of the competent person;

b) In case of investor selection, the competent person shall decide on the response to arising eventualities.

4. The Government shall detail this Article.

Article 89. Settlement of appeals in bidding

1. If seeing that its/his/her legitimate rights and interests are affected, a contractor, investor, agency or organization may lodge an appeal to the competent person, project owner or bid solicitor to reconsider matters arising the course of contractor or investor selection, or on the contractor or investor selection result in accordance with Articles 90, 91 and 92 of this Law.

2. An appeal of a contractor, investor, agency or organization may only be considered and settled when he/she/it has not submitted a complaint, denunciation or lawsuit petition on such appeal content. In case a contractor, investor, agency or organization brings its/his/her case to court or submits complaints, denunciations while its/his/her appeal is undergoing the settlement process, the appeal settlement shall immediately cease.

3. The contractor, investor, agency or organization may withdraw its/his/her appeal in the course of appeal settlement.

Article 90. Conditions for consideration and settlement of appeals

1. For matters arising before the notice on contractor or investor selection result is issued, a written appeal shall be considered and resolved if it fully satisfies the following conditions:

a) A written appeal relating to contents of the bidding dossier may be made by an agency or organization interested in the bidding package or business investment project; a written appeal relating to other contents about the process of contractor or investor selection must be made by a contractor or investor participating in the bidding;

b) The written appeal must be signed and sealed (if any) by the lawful representative of the contractor, investor, agency or organization sending the appeal, or digitally signed and sent on the national bidding network;

c) The written appeal shall be sent to the appeal-settling unit specified in Clause 1 Article 91 and Clause 1 Article 92 of this Law before the notice on contractor or investor selection result is issued.

2. A written appeal relating to the contractor or investor selection result shall be considered and resolved if the contractor or investor fully satisfies the following conditions:

a) The written appeal must be made by a contractor or investor participating in the bidding;

b) The written appeal must be signed and sealed (if any) by the lawful representative of the contractor, investor participating in the bidding, or digitally signed and sent on the national bidding network;

c) The contractor or investor has not submitted a lawsuit petition, complaint or denunciation on such appeal content;

d) The appeal content is directly related to the evaluation result of bid dossier of the contractor or investor submitting the written appeal;

dd) The appealing contractor or investor shall pay the expenses for appeal settlement to the standing section assisting Chairperson of the appeal settlement consultancy council (hereinafter referred to as the standing section) before or at the time of submission of the written appeal;

e) The contractor must send the written appeal to the project owner or competent person within the time limit specified in Clause 2 Article 91 of this Law; the investor must send the written appeal to the bid solicitor or competent person within the time limit specified in Clause 2 Article 92 of this Law.

3. In case an appeal of a contractor, investor, agency or organization does not satisfy the conditions specified in Clauses 1 and 2 of this Article, the person in charge of settlement of the appeal shall notify in writing the contractor, investor, agency or organization of no consideration and settlement of appeal.

Article 91. Procedures for settlement of appeals in contractor selection

1. An appeal related to matters before the notice on contractor selection result is issued shall be settled as follows:

a) The contractor, agency or organization shall send the written appeal to the project owner before the contractor selection result is posted on the national bidding network;

b) The project owner shall issue and send an appeal settlement document to the contractor, agency or organization within 7 working days after receiving the written appeal;

c) In case the contractor, agency or organization disagrees with the appeal settlement result, or the project owner does not issue a document on appeal settlement upon expiration of the time limit specified at Point b of this Clause, the contractor, agency or organization may send the written appeal to a competent person within 5 working days after the deadline for appeal settlement or the date of receipt of the project owner's appeal settlement document;

d) The competent person shall issue and send an appeal settlement document to the contractor, agency or organization within 5 working days after receiving the written appeal.

2. An appeal related to matters after the notice on contractor selection result is issued shall be settled according to one of the two following procedures:

a) The contractor shall send the written appeal to the project owner within 10 days from the day the contractor selection result is posted on the national bidding network. The project owner shall issue and send an appeal settlement document to the contractor within 7 working days after receiving the written appeal.

In case the contractor disagrees with the appeal settlement result, or the project owner does not issue a document on appeal settlement upon expiration of the time limit specified in this Clause, the contractor may send the written appeal to a competent person via the standing section within 5 working days after the deadline for appeal settlement or the date of receipt of the project owner's appeal settlement document. The competent person shall issue a decision on settlement of the appeal on contractor selection result within 5 working days after receiving written opinions of the appeal settlement consultancy council;

b) The contractor shall send the written appeal to the competent person via the standing section within 10 days from the day the contractor selection result is posted on the national bidding network. The competent person shall issue the decision on settlement of appeal on contractor selection result within 5 working days after receiving written opinions of the appeal settlement consultancy council.

3. The time for appeal settlement specified in Clauses 1 and 2 of this Article is counted from the date on which the administrative division of the person in charge of appeal settlement receives the written appeal or the date on which the written appeal is submitted on the national bidding network.

4. In case of necessity, the appeal settlement consultancy council shall, based in the contractor's written appeal, request the competent person to consider the suspension of contract signing and performance. In case the proposal of the appeal settlement consultancy council is accepted, within 5 working days from the date of receiving the document, the competent person shall send the project owner a written notice on suspension of contract signing and performance, clearly stating the period of suspension.

5. An appeal settlement document must contain the conclusion on the contractor's appeal content; in case the appeal is concluded to be correct, the appeal settlement document must clearly state the measures, methods and time to remedy consequences (if any); the appealing contractor shall receive a refund of paid appeal settlement expenses. In case the contractor's appeal is concluded to be incorrect, the written reply must clearly state the reason; the appealing contractor shall not receive a refund of paid appeal settlement expenses.

6. In case of disagreement with the competent person's appeal settlement decision, the project owner or contractor has the right to initiate a lawsuit to the court.

Article 92. Procedures for settlement of appeals in investor selection

1. An appeal related to matters before the notice on investor selection result is issued shall be settled as follows:

a) The investor, agency or organization shall send the written appeal to the bid solicitor before the notice on investor selection result is issued;

b) The bid solicitor shall issue and send an appeal settlement document to the investor, agency or organization within 15 days after receiving the written appeal;

c) In case the investor, agency or organization disagrees with the appeal settlement result, or the bid solicitor does not issue a document on appeal settlement upon expiration of the time limit specified at Point b of this Clause, the investor, agency or organization may send the written appeal to a competent person within 5 working days after the deadline for appeal settlement or the date of receipt of the bid solicitor's appeal settlement document;

d) The competent person shall issue and send an appeal settlement document to the investor, agency or organization within 5 working days after receiving the written appeal.

2. An appeal related to matters after the notice on investor selection result is issued shall be settled according to one of the two following procedures:

a) The investor shall send the written appeal to the bid solicitor within 10 days from the date on which the notice on investor selection result is issued. The bid solicitor shall issue and send an appeal settlement document to the investor within 15 days after receiving the written appeal.

In case the investor disagrees with the appeal settlement result, or the bid solicitor does not issue a document on appeal settlement upon expiration of the time limit specified at this Point, the investor may send the written appeal to a competent person via the standing section within 5 working days after the deadline for appeal settlement or the date of receipt of the bid solicitor's appeal settlement document. The competent person shall issue a decision on settlement of appeal on investor selection result within 10 days after receiving written opinions of the appeal settlement consultancy council;

b) The investor shall send the written appeal to the competent person via the standing section within 10 days from the date on which the notice on investor selection result is issued. The competent person shall issue a decision on settlement of appeal on investor selection result within 10 days after receiving written opinions of the appeal settlement consultancy council.

3. The time for appeal settlement specified in Clauses 1 and 2 of this Article is counted from the date on which the administrative division of the person in charge of appeal settlement receives the written appeal or the date on which the written appeal is submitted on the national bidding network.

4. In case of necessity, the appeal settlement consultancy council shall, based in the investor's written appeal, request the competent person to consider the suspension of contract signing and performance. In case the proposal of the appeal settlement consultancy council is accepted, within 10 days from the date of receiving the document, the competent person shall issue a written notice on suspension of contract signing and performance, clearly stating the period of suspension.

5. An appeal settlement document must contain the conclusion on the investor's appeal content; in case the appeal is concluded to be correct, the appeal settlement document must clearly state the measures, methods and time to remedy consequences (if any); the appealing investor shall receive a refund of paid appeal settlement expenses. In case the investor's appeal is concluded to be incorrect, the written reply must clearly state the reason; the appealing investor shall not receive a refund of paid appeal settlement expenses.

6. In case of disagreement with the competent person's appeal settlement decision, the bid solicitor or investor has the right to initiate a lawsuit to the court.

Article 93. Composition, responsibilities and operation of appeal settlement consultancy councils

1. Appeal settlement consultancy councils include:

a) Appeal settlement consultancy council established by the Minister of Planning and Investment;

b) Appeal settlement consultancy councils established by Ministers, Heads of ministerial-level agencies, government-attached agencies, other central agencies;

c) Appeal settlement consultancy councils established by Directors of provincial-level Departments of Planning and Investment.

An appeal settlement consultancy council shall be established within 5 working days after receiving a written appeal of a contractor or investor.

2. The composition of appeal settlement consultancy councils and standing sections of their Chairpersons shall be as follows:

a) An appeal settlement consultancy council is composed of Chairperson, Vice Chairperson (if necessary) and other members being representatives of competent persons, relevant agencies and may additionally include representatives of professional associations, experts, scientists.

Members of the consultancy council must not be persons with family relationships specified in the Law on Enterprises of the person signing the written appeal, persons in expert team, appraisal team and person signing the contractor or investor selection result;

b) Chairperson of the appeal settlement consultancy council specified at Point a Clause 1 of this Article is the representative of the Ministry of Planning and Investment. Chairpersons of appeal settlement consultancy councils specified at Point b Clause 1 of this Article are representatives of units assigned to manage bidding activities of such mentioned agencies. Chairpersons of appeal settlement consultancy councils specified at Point c Clause 1 of this Article are representatives of provincial-level Departments of Planning and Investment;

c) Standing sections of Chairpersons of appeal settlement consultancy councils are units assigned to manage bidding activities but do not include persons in expert teams, appraisal teams of bidding packages or projects. Standing sections shall perform administrative tasks prescribed by Chairpersons of appeal settlement consultancy councils; receive and manage money amounts paid by appealing contractors and investors.

3. Appeal settlement consultancy councils have the following responsibilities:

a) The appeal settlement consultancy council specified at Point a Clause 1 of this Article shall provide the appeal settlement consultancy at the Prime Minister's request;

b) Appeal settlement consultancy councils specified at Point b Clause 1 of this Article shall provide their appeal settlement consultancy for all bidding packages under projects, procurement estimates, business investment projects under the competence or management of Ministers or Heads of ministerial-level agencies, government-attached agencies or other central agencies, except for bidding packages and projects specified at Point a of this Clause;

c) Appeal settlement consultancy councils specified at Point c Clause 1 of this Article shall provide their appeal settlement consultancy for all bidding packages under projects, procurement estimates, business investment projects in their provinces or centrally-run cities, except for bidding packages and projects specified at Points a and b of this Clause.

4. Appeal settlement consultancy councils operate as follows:

a) Appeal settlement consultancy councils operates on a case-by-case basis, work on a collegial basis and make decision by the majority rule. Their members may reserve their opinions and take responsibility before law for their opinions;

b) Appeal settlement consultancy councils have the right to request contractors, investors, project owners, bid solicitors and relevant agencies to provide information on bidding packages, projects or business investment projects and other relevant information to perform their tasks;

c) Appeal settlement results shall be sent to the competent person within 25 days for contractors' appeals or within 35 days for investors' appeals, from the date on which appeal settlement consultancy councils are established.

Article 94. Rights to initiate lawsuits and to request courts to apply interim emergency measures

1. The initiating of lawsuits shall comply with the civil procedure law.

2. When filing a lawsuit petition or during the court's lawsuit settlement, the parties have the right to request the court to promptly suspend the bid closure; approval of short lists; approval of the contractor or investor selection result; conclusion of contracts; or performance of contracts or apply other interim emergency measures in accordance with law.

Chapter X
IMPLEMENTATION PROVISIONS

Article 95. Effect

1. This Law takes effect on January 01, 2024.

2. The Law No. 43/2013/QH13 on Bidding of which a number of articles are amended and supplemented by the Law No. 03/2016/QH14, Law No. 04/2017/QH14, Law No. 40/2019/QH14, Law No. 64/2020/QH14 and Law No. 03/2022/QH15 (hereinafter referred to as Law No. 43/2013/QH13 on Bidding) ceases to be effective on the effective date of this Law, except for Article 96 of such Law.

3. Contracts signed under Point a Clause 1 Article 55 of this Law shall be performed within the terms specified in the contracts but not more than 05 years from the effective date of this Law.

Article 96. Transitional provisions

1. Bidding packages for contractor selection of which dossiers of invitation for expression of interest, dossiers of invitation to prequalification, bidding dossiers, dossiers of requirements have been approved and issued before the effective date of this Law, the selection of short lists, selection of contractors, signing of contracts and management of contract performance shall continue to be implemented in accordance with the Law No. 43/2013/QH13 on Bidding and documents detailing and guiding the implementation of such Law.

2. For business investment projects of which bidding dossiers have been approved and issued before the effective date of this Law, the selection of investors, signing of contracts and management of contract performance shall continue to be implemented in accordance with the Law No. 43/2013/QH13 on Bidding and documents detailing and guiding the implementation of such Law. The Government shall detail the transitional provisions applicable to business investment projects.

3. From January 01, 2024 to the effective date of the Law on Land (amended), the selection of investors to implement investment projects using land shall continue to comply with the Law No. 43/2013/QH13 on Bidding and documents detailing and guiding the implementation of such Law.

4. For contracts signed before the effective date of this Law in which the contractors winning the bidding of supplies and chemicals are responsible for providing medical equipment for the use of such supplies and chemicals, they shall continue to be performed with the terms specified in the contracts but not more than 05 years from the effective date of this Law.

This Law was adopted on June 23, 2023, by the XVthNational Assembly of the Socialist Republic of Vietnam at its 5th session.

CHAIRMAN OF THE NATIONAL ASSEMBLY

Vuong Dinh Hue